



KENYA

DATA PROTECTION AND PRIVACY CASE DIGEST

KEY DECISIONS. LEGAL PRINCIPLES.
PRACTICAL INSIGHTS.

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decisions shaping data
protection and privacy
jurisprudence in Kenya.



DATA PROTECTION
JURISPRUDENCE



PRIVACY RIGHTS
AND FREEDOMS



REGULATORY AND
ENFORCEMENT
DECISIONS



CASE SUMMARIES
AND KEY
TAKEAWAYS

MP

Muchangi Patrick &
ASSOCIATES ADVOCATES
Advocates & Legal Consultants



Associates Advocates
Nairobi, Republic of Kenya
P.O. Box 44512-00100, Nairobi



+254 722 878 607 • +254 736 358 938



patrick@dataprivacyadvocates.co.ke



www.dataprivacyadvocates.co.ke

Muchangi Patrick

ADVOCATE • DATA PROTECTION LAW SPECIALIST • AI & TECHNOLOGY LAW

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2020 – 2026

COMPILED AND EDITED BY

Muchangi Patrick & Associates Advocates

Nairobi, Republic of Kenya

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Pinetree Plaza, 8th Floor, Kaburu Drive, Off Ngong Rd • P.O. Box 44512-00100, Nairobi
+254 722 878 607 • +254 736 358 938 • patrick@dataprivacyadvocates.co.ke • datarights.co.ke

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Editorial Note

This Volume presents the first tranche — thirteen landmark decisions — of the Kenya Privacy Law Review's systematic case digest project covering Kenyan data protection and digital-rights jurisprudence from 2020 to 2026. Cases were selected on the basis of constitutional or doctrinal significance to Kenyan data protection law, AI governance, and digital identity, following a full triage of a wider corpus of firstinstance and appellate decisions.

Each digest has been prepared directly from the primary judgment text and cross-checked against the version published by the National Council for Law Reporting (Kenya Law) at new.kenyalaw.org. Direct quotation has been kept to short, essential extracts; the body of each digest is written in the editors' own words. Editorial commentary is clearly distinguished from the Court's own reasoning throughout, consistent with the KPLR Editorial Standards of Accuracy, Neutrality, Analytical Rigor, Brevity, Consistency, Practical Utility and Scholarly Integrity.

Two further categories of case remain outside this Volume pending separate treatment: (i) a substantial body of ODPC enforcement-notice appeal jurisprudence, principally arising from credit, SACCO and debt-collection disputes, which will form Volume II of this series; and (ii) a small number of source documents in the underlying corpus whose relevance to data protection law was marginal, ambiguous, or which could not be reliably matched to their stated case name, and which have accordingly been excluded from this Volume pending further verification.

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CASE DIGEST NO. 01

NUBIAN RIGHTS FORUM & 2 OTHERS v ATTORNEY GENERAL & 6 OTHERS; CHILD WELFARE SOCIETY & 8 OTHERS (INTERESTED PARTIES)

[2020] KEHC 8772 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Judicial Review Division

1. Case Information

Case Name	<i>Nubian Rights Forum & 2 others v Attorney General & 6 others; Child Welfare Society & 8 others (Interested Parties)</i>
Neutral Citation	[2020] KEHC 8772 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Judicial Review Division
Judge(s)	P. Nyamweya, Mumbi Ngugi & W. Korir, JJ (three-judge bench)
Date of Decision	30 January 2020
Case Number	Petition 56, 58 & 59 of 2019 (Consolidated)
Subject Area	Constitutional Law; Data Protection; Digital Identity; AI/Biometric Governance
Editorial Classification	Constitutional Law · Data Protection · Digital Identity

2. Editorial Summary

Three consolidated petitions challenged the constitutionality of amendments establishing NIIMS ("*Huduma Namba*"), a single population register consolidating biometric data. The petitioners argued the *enabling law* was passed without adequate public participation, deepened discrimination against the Nubian community, and authorised mass biometric collection including *DNA* and *GPS coordinates*, without an adequate protective framework, breaching Article 31. The *three-judge* bench held most *biometric data collection* necessary and constitutional, but found *DNA and GPS collection* intrusive, unnecessary and unconstitutional absent specific empowering legislation, and held the *Data Protection Act*, though newly enacted, was not yet operationalised enough to safeguard NIIMS data. Rollout was made conditional on a compliant regulatory framework. This remains Kenya's foundational authority on constitutional limits to state biometric collection.

4. Material Facts

The *Statute Law (Miscellaneous Amendment) Act No. 18 of 2018* amended the *Registration of Persons Act* to establish NIIMS as a single population register assigning every Kenyan and resident foreigner a unique "*Huduma Namba*", consolidating biometric and other personal data (including *fingerprints, iris scans, DNA* and *GPS coordinates* under the amended definition of "biometric") from multiple government databases. The petitioners contended that: (i) *the enabling amendments were passed via an omnibus miscellaneous-amendments Bill without adequate public participation or Senate involvement*; (ii) *NIIMS would deepen documented discrimination against the Nubian community and other marginalised groups in accessing identity documents*; and (iii) *the amendments authorised open-ended collection of sensitive personal data, including DNA and location data*, without a functioning data protection law to safeguard it. The Data Protection Act, 2019 was enacted during the course of the hearing, prompting supplementary submissions on its adequacy.

5. Issues for Determination

1. *Whether the legislative process leading to enactment of the impugned amendments complied with the constitutional requirements of public participation and, where applicable, Senate involvement.*
2. *Whether the collection of biometric data (including DNA and GPS coordinates) under NIIMS was intrusive, excessive and disproportionate, in violation of Article 31 of the Constitution.*
3. *Whether the collection of NIIMS data from children violated their right to privacy.*
4. *Whether there existed sufficient legal safeguards and a data protection framework to justify the operationalisation of NIIMS.*
5. *Whether the impugned amendments violated the right to equality and non-discrimination, in particular as regards the Nubian community and persons at risk of exclusion.*

6. Holding

Issue	Holding
<i>Legislative process / public participation</i>	Constitutional: the process, while capable of improvement, met the threshold required.
<i>Collection of biometric data generally</i>	Necessary for NIIMS's stated purpose and therefore not unconstitutional, save for DNA and GPS coordinates.

<i>Collection of DNA and GPS coordinates</i>	Unconstitutional — intrusive, unnecessary and, absent specific empowering legislation, a violation of <i>Article 31</i> .
<i>Children's data</i>	<i>NIIMS applies to children; the general privacy</i> protections apply with even greater force, but the legislative framework for children's biometric data was found inadequate.
<i>Adequacy of the legal/regulatory framework</i>	<i>Inadequate as operationalised</i> — NIIMS could proceed only once a compliant regulatory framework was first enacted.
<i>Equality and non-discrimination</i>	Not established on the evidence before the Court; the amendments did not on their face differentiate against the Nubian community, though the Court acknowledged a residual risk of exclusion.

7. Court's Reasoning

A. Personal and Sensitive Data — Definitional Foundations

The Court held that biometric data, by its nature, is information about an identified or identifiable natural person and therefore "personal data" attracting Article 31 protection. It adopted the Data Protection Act's definition — mirroring the GDPR and the AU Convention on Cyber Security and Personal Data Protection — of personal data as information relating to an identified or identifiable natural person, and found that GPS coordinates and the biometric identifiers captured on the NIIMS Data Capture Form fell squarely within it. The Court further held that biometric data, including DNA, met the Act's definition of "sensitive personal data", attracting a higher standard of protection because of the more serious reputational, social and legal consequences of its unauthorised disclosure.

B. Necessity and Proportionality of Data Collected

Applying a necessity/proportionality framework informed by comparative jurisprudence (including the European Court of Human Rights' treatment of DNA retention), the Court found that most biometric identifiers collected served NIIMS's legitimate identification and verification functions and were therefore

necessary. DNA and GPS coordinates stood on a different footing: DNA could disclose highly sensitive genetic and familial information extending beyond the data subject, and GPS data risked enabling location tracking; neither was shown to be necessary for identity verification, and neither was anchored in specific empowering legislation prescribing appropriate safeguards. Their collection was accordingly found unconstitutional and a violation of Article 31.

C. Adequacy of the Data Protection Framework

Taking judicial notice of the newly enacted Data Protection Act, 2019, the Court measured it against the OECD Privacy Principles (preferred over the GDPR and UN Principles as the most broadly applicable international benchmark) and found that the Act substantially incorporated the core principles of data protection under section 25. However, the Court held that a data protection statute is not self-executing: adequate protection required operationalisation through appointment of a Data Commissioner, registration of controllers and processors, and enactment of implementing regulations — none of which existed at the time of judgment. The absence of an operational regulatory framework specific to NIIMS's security architecture was found to leave the collected data inadequately protected, rendering continued implementation conditional on first putting such a framework in place.

D. Consent

The Court found, on the evidence, that NIIMS registration had in practice been conducted with the consent of data subjects (registration having been rendered non-mandatory pursuant to the Court's own interim order), while noting that at the time of collection there was no statutory requirement for such consent — a gap since addressed by sections 26 and 30(1) of the Data Protection Act, 2019.

E. Remedies and Disposition

Rather than nullify NIIMS outright, the Court crafted a conditional remedy: it declared the specific statutory provisions authorising DNA and GPS collection unconstitutional, null and void, while permitting the State to proceed with NIIMS generally only once it enacted a comprehensive, constitutionally compliant regulatory framework. Each party was ordered to bear its own costs, the matter being one of public interest.

8. Ratio Decidendi

6. Biometric data is personal data, and certain categories of it (including DNA) are sensitive personal data, attracting the protections of Article 31 of the Constitution and the Data Protection Act.
7. The constitutionality of state collection of biometric data turns on necessity and proportionality to a legitimate, specific purpose; data not shown to be necessary for that purpose is an unjustified limitation on the right to privacy.
8. Collection of DNA and GPS coordinates for identification purposes, without specific empowering legislation prescribing safeguards, is unconstitutional.
9. A data protection statute does not, by its mere enactment, constitute an adequate legal framework; adequacy requires operationalisation — a functioning regulator, registered controllers/processors, and implementing regulations.
10. Large-scale state processing of personal data may lawfully proceed only where a comprehensive and compliant regulatory framework governing that specific processing activity is first in place.

9. Obiter Dicta

The Court's extended observations on the comparative experience of India's Aadhaar system, and on the architecture (centralised versus federated/decentralised) of biometric identification systems, were not essential to the disposition but have proved influential in subsequent Kenyan digital-identity litigation and policy debate.

3. Jurisprudential Context & Procedural History

Decided 30 January 2020, before the Data Protection Act's institutional infrastructure existed (Data Commissioner and regulations followed only in 2021), the Court nonetheless anchored its analysis in the newly enacted Act's definitions, applying OECD Privacy Principles as its benchmark. It sits alongside the African Commission's Nubian Community in Kenya v Kenya and is the direct ancestor of the later Maisha Namba litigation and Republic v Tools for Humanity, both of which adopt its proportionality reasoning. Consolidated Petitions 56, 58 & 59 of 2019 (Nubian Rights Forum, KHRC, KNCHR) were heard by a three-judge bench under Article 165(4); an interim order kept NIIMS registration nonmandatory pending determination, and supplementary submissions followed enactment of the DPA midhearing.

10. Principles Established

- Necessity and proportionality govern the constitutionality of state biometric data collection.
- DNA and location data require specific, dedicated statutory safeguards distinct from general biometric identifiers.
- Statutory enactment of a data protection law is necessary but not sufficient; operationalisation is a constitutional precondition for large-scale state data processing.
- Children's personal data warrants protection at least equal to, and in practice greater than, that afforded to adults.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 10, 24, 27, 31, 94(6), 118

Statutes

- Registration of Persons Act (Cap 107), as amended by the Statute Law (Miscellaneous Amendment) Act No. 18 of 2018

- Data Protection Act, 2019 (Act No. 24 of 2019) — ss. 2, 25, 26, 30(1)
- Kenya Citizens and Foreign Nationals Management Service Act, 2011

Regulations

- (no NIIMS-specific regulations existed at the time of judgment; their absence was central to the finding of inadequacy)

Cases

- R v Big M Drug Mart Ltd (Canada) — purpose-and-effect test for constitutionality of legislation
- S and Marper v United Kingdom (ECtHR) — proportionality of DNA/biometric retention
- Justice K.S. Puttaswamy (Retd.) v Union of India (Aadhaar case, Supreme Court of India)
- Katiba Institute v President's Delivery Unit & 3 others [2017] eKLR — public participation and access to information
- Doctors for Life International v Speaker of the National Assembly (South Africa) — content of meaningful public participation
- Trusted Society of Human Rights Alliance & 3 others v Judicial Service Commission [2016] eKLR

International Instruments

- African Union Convention on Cyber Security and Personal Data Protection
- OECD Guidelines on the Protection of Privacy and Transborder Flows of Personal Data (OECD Privacy Principles)
- UN General Assembly Resolution on the Right to Privacy in the Digital Age, A/RES/73/179

Comparative Jurisprudence

- Nubian Community in Kenya v Kenya (African Commission on Human and Peoples' Rights, 2015)
- Children of Nubian Descent in Kenya v Kenya (African Committee of Experts on the Rights and Welfare of the Child, 2011)
- Aadhaar jurisprudence of the Supreme Court of India

12. Relationship with Existing Jurisprudence

Establishes the foundational Kenyan doctrine on constitutional limits to state biometric data collection and on what makes a data protection framework "adequate" in law. Directly built upon by the Maisha Namba conservatory-order litigation (Haki na Sheria Initiative v Attorney General) and cited as the governing necessity/proportionality and operationalisation standard in Republic v Tools for Humanity Corporation (the Worldcoin judgment), which applied its reasoning to private-sector biometric collection.

13. Practical Implications

Data Controllers

State and private bodies collecting biometric data must be able to justify each category of data collected as necessary to a specific, legitimate purpose; DNA and location data require particular caution and, ideally, dedicated statutory authorisation.

Data Processors

Processors engaged in large-scale biometric processing programmes should expect that the mere existence

of the Data Protection Act does not discharge the controller's obligations — operational safeguards (DPIAs, security architecture, registration) are independently required.

Data Protection Officers

DPOs advising on national or large-scale identity programmes should treat "necessity" as a category-by-category test, not a blanket justification for the programme as a whole.

Public Bodies

Public bodies proposing biometric or population-register systems should anticipate that operational readiness (regulator, regulations, registration) will be treated as a constitutional precondition, not a mere administrative formality.

Advocates

Counsel challenging state data-collection programmes have a template necessity/proportionality pleading structure, and a basis for arguing that statutory enactment alone does not cure inadequate operationalisation.

Regulators

The ODPC's institutional readiness — appointment, registration systems, regulations — is itself now a justiciable component of the lawfulness of any programme it is meant to oversee.

14. Compliance Checklist

- ☐ Identify and document the specific, legitimate purpose for each category of biometric data collected.
- ☐ Exclude DNA and precise location data from collection unless specific empowering legislation with defined safeguards exists.
- ☐ Confirm the relevant data protection regulator is operational (appointed, resourced, empowered by regulations) before large-scale rollout.
- ☐ Conduct and document a Data Protection Impact Assessment before commencing high-risk processing.
- ☐ Build in enhanced safeguards for the personal data of children.
- ☐ Maintain a defensible necessity/proportionality record for each data element collected, reviewable by a court.

CASE DIGEST NO. 02

REPUBLIC V TOOLS FOR HUMANITY CORPORATION (US) & 9 OTHERS; KATIBA INSTITUTE & 4 OTHERS (EX PARTE APPLICANTS)

[2025] KEHC 5629 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) J R Division

1. Case Information

Case Name	Republic v Tools for Humanity Corporation (US) & 9 others; Katiba Institute & 4 others (Ex parte Applicants)
Neutral Citation	[2025] KEHC 5629 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Judicial Review Division
Judge(s)	R.E. Aburili, J
Date of Decision	5 May 2025
Case Number	Judicial Review Application E119 of 2023
Subject Area	Data Protection; AI Governance; Biometric Data; Judicial Review
Keywords	Worldcoin; Orb; biometric data; informed consent; cryptocurrency inducement; DPIA; cross-border transfer; ODPC enforcement notice; judicial review against private entities
Editorial Classification	Data Protection · AI Governance · Administrative Law

2. Editorial Summary

Civil society bodies — Katiba Institute, LSK, KHRC, ICJ and AfriCOG — sought judicial review against Worldcoin's corporate group over collection of iris and facial biometric data via a device called the Orb, offered in exchange for cryptocurrency tokens. They alleged unregistered processing, no valid DPIA, consent vitiated by financial inducement, unlawful cross-border transfer, and continued defiance of ODPC directives. The Court held the applicants, not being data subjects, were not required to exhaust the DPA's internal complaints mechanism; that cryptocurrency-induced consent from economically vulnerable persons was not free, specific or informed; and that judicial review lies against private entities violating Bill of Rights protections. It granted prohibition, certiorari and mandamus, including destruction of

unlawfully collected biometric data within seven days. This is Kenya's leading authority on private sector biometric collection and inducement-vitiated consent.

4. Material Facts

Worldcoin entities deployed a biometric scanning device ("the Orb") in Kenya to capture iris and facial images of members of the public, who received cryptocurrency tokens ("Worldcoin") in exchange for enrolment. The ODPC had, on 23 June 2022, directed the Worldcoin entities to restrict processing pending compliance review; the respondents continued processing in defiance of that direction. No valid Data Protection Impact Assessment was demonstrated to have preceded the processing. Biometric data was transferred to servers outside Kenya without the Data Commissioner's authorisation. The Orb device itself had not obtained the type approval required under the Kenya Information and Communications (Importation, Type Approval and Distribution of Communications Equipment) Regulations, 2010. The ODPC later cancelled Worldcoin's registration certificates on 5 September 2023.

5. Issues for Determination

11. Whether processing personal data without a valid DPIA, informed consent, or compliance with ODPC directions was unlawful and a breach of the right to privacy.
12. Whether entities collecting sensitive personal data (biometric identifiers) without registration as data controllers/processors acted unlawfully.
13. Whether transfer of biometric data to servers outside Kenya without ODPC authorisation violated the Data Protection Act.
14. What standard of informed consent applies to data subjects, and whether consent induced by monetary/cryptocurrency incentive can meet it.
15. Whether an applicant who is not itself a data subject may approach the High Court without first exhausting the ODPC's internal complaints mechanism.
16. Whether service on foreign respondents' Kenyan agents, without leave for service out of the jurisdiction, was valid where the respondents participated in proceedings without protest.
17. Whether judicial review remedies are available against private entities.

6. Holding

Issue	Holding
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Exhaustion / locus standi	Section 56 DPA restricts complaints to data subjects; the applicants (organisations, not data subjects) had no access to that mechanism and were exempt from exhausting it. Locus standi, broadly construed under Articles 22 and 258, was established.
Registration and lawful basis for processing	The 1st–5th respondents processed sensitive personal data without valid registration under s.18 and without a lawful basis under s.30 DPA — unlawful.
DPIA	No valid DPIA was conducted as required by s.31 DPA prior to processing — unlawful.
Consent	Consent induced by cryptocurrency tokens, especially from vulnerable persons, was not free, specific or informed as required by s.2 DPA and Regulation 4 of the General Regulations — invalid.
Cross-border transfer	Transfer of biometric data outside Kenya without Data Commissioner authorisation breached s.48 DPA.
Compliance with ODPC directions	Continued processing in defiance of the ODPC's restriction directive was unlawful and undermined the regulator's authority.
Judicial review against private entities	Available where the entity performs a public function, exercises public authority, or violates Bill of Rights protections that bind all persons under Article 20(1)–(2).
Service	Valid — the respondents, having participated in proceedings through Kenyan counsel without protest, were deemed to have waived objections to the mode of service.

7. Court's Reasoning

A. Exhaustion and the Limits of Section 56

The Court held that the doctrine of exhaustion, grounded in s.9(2) of the Fair Administrative Action Act and Article 159(2)(c), is not absolute. Section 56 DPA confines the internal complaints mechanism to

"data subjects" as defined in s.2. Because the applicant organisations were not themselves data subjects and had no standing to lodge a s.56 complaint, that avenue was simply unavailable to them — a party cannot be required to exhaust a remedy that does not exist for it. Constitutionally expanded locus standi under Articles 22 and 258 permitted the applicants to litigate in the public interest on behalf of affected data subjects.

B. Informed Consent and Inducement

The Court articulated a detailed standard for informed consent: data subjects must understand what data is collected, why, how it will be used and shared, the risks involved, and their right to withdraw. Financial or cryptocurrency inducement, particularly directed at economically vulnerable individuals, was found capable of vitiating the voluntariness of consent, since the offer of a valuable token could operate as an "irresistible incentive" that pressures rather than informs. The Court further held that a single consent cannot validly cover multiple, ongoing processing operations — Regulation 4(3)(c) requires consent specific to each processing operation.

C. Registration, DPIA and Cross-Border Transfer

Sections 18, 30 and 31 DPA were treated as sequential, mandatory preconditions to lawful processing of sensitive personal data: registration, a lawful basis, and (for high-risk processing) a DPIA. None was satisfied. Section 48's prohibition on transferring personal data outside Kenya absent a DataCommissioner adequacy determination was similarly breached by transmission of biometric data to foreign servers.

D. Judicial Review Against Private Actors

The Court rejected the proposition that judicial review is confined to public bodies, holding that Articles 20(1)–(2) bind the Bill of Rights on all persons, including private entities, and that the High Court's remedial powers under Article 23 extend accordingly. Where a private actor's conduct is alleged to violate constitutional rights, judicial review orders — mandamus, prohibition, certiorari — may issue against it.

E. Remedies

The Court issued prohibition against further collection, processing or transfer of biometric data without a valid DPIA or lawful consent; certiorari quashing the impugned processing decisions; and mandamus compelling destruction, within seven days and under ODPC supervision, of unlawfully obtained biometric data. It declined to revive the already-cancelled registration certificates (overtaken by events) and declined a prayer effectively asking the Court to legislate on commercial data use, noting the ODPC's own efforts toward regulatory reform. Each party bore its own costs.

8. Ratio Decidendi

18.A party that is not a data subject has no access to the section 56 complaints mechanism and is not required to exhaust it before approaching the High Court.

19. Consent obtained through financial or cryptocurrency inducement is not automatically free, specific and informed consent; the inducement's effect on vulnerable data subjects is a material consideration.
20. Consent must be specific to each processing operation; a single consent does not validly authorise an indefinite range of processing.
21. Registration under section 18, a lawful basis under section 30, and (for high-risk processing) a DPIA under section 31 are mandatory sequential preconditions to lawful processing of sensitive personal data.
22. Judicial review lies against private entities where they perform a public function or violate rights under the Bill of Rights, which binds all persons.
23. A party who participates in proceedings through counsel without protest as to service is deemed to have waived objections to the mode of service.

9. Obiter Dicta

The Court's observations on courts modernising service procedures for foreign litigants in the digital era (favouring email/agent service over rigid Order 5 rule 21 procedure) went beyond what was strictly necessary to dispose of the service objection, given the independent finding of waiver, but are likely to influence future practice on cross-border service in data protection litigation involving foreign technology companies.

3. Jurisprudential Context & Procedural History

Decided under a fully operational DPA regime, this judgment shows the framework Nubian Rights Forum found wanting in 2020 now functioning: the ODPC had already investigated, restricted processing, and cancelled Worldcoin's registration before litigation concluded. It develops consent doctrine beyond the earlier image-rights cases via a novel fact pattern — cryptocurrency inducement — and extends judicial review to private entities on Bill of Rights grounds (Articles 20(1), 22). Judicial Review Application E119 of 2023 named the Worldcoin corporate group, a local Orb operator, the Data Commissioner, the CS for ICT, the Communications Authority and the CBK as respondents; preliminary objections on standing, exhaustion and service were argued alongside the merits.

10. Principles Established

- Financial inducement is a relevant factor in assessing the voluntariness of data protection consent.
- Consent must be granular — specific to each processing purpose/operation — not blanket.

- Judicial review is an available remedy against private data controllers who violate constitutional privacy rights.
- Non-data-subject public-interest litigants are not barred by the exhaustion doctrine where the statutory complaints mechanism does not extend to them.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 20(1)–(2), 22, 23, 31, 47, 159(2)(c), 258

Statutes

- Data Protection Act, 2019 — ss. 2, 8, 18, 19(2), 25, 30, 31, 32, 37(3), 45, 48, 49, 56
- Fair Administrative Action Act — ss. 3, 4, 7, 8, 9, 11, 14
- Law Reform Act — ss. 8, 9
- Civil Procedure Act — ss. 1A, 1B

Regulations

- Data Protection (General) Regulations, 2021 — regs. 4, 5, 49
- Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021 — regs. 5, 14, 16
- Kenya Information and Communications (Importation, Type Approval and Distribution of Communications Equipment) Regulations, 2010 — reg. 3(1)
- Civil Procedure Rules — Order 5 rules 17, 21

Cases

- Amugune v Advocates Disciplinary Tribunal & another [2025] KEHC 4305 (KLR)
- Diamond Trust Bank Kenya Limited v Maingi & another [2023] KECA 712 (KLR)
- Kenya Ports Authority v Modern Holdings [E.A.] Limited [2017] KECA 293 (KLR)
- Kenya Shell Limited v Kobil Petroleum Limited [2006] KECA 389 (KLR)
- Kones v Republic & another ex-parte Kimani Wa Nyoike & 4 others [2006] KECA 364 (KLR)
- Krystalline Salt Limited v Kenya Revenue Authority [2019] KEHC 6939 (KLR)
- Macharia & another v Kenya Commercial Bank Limited & 2 others [2012] KESC 8 (KLR)

International Instruments

- EU General Data Protection Regulation (as comparative reference for consent standards)

Comparative Jurisprudence

— (principally domestic Kenyan judicial review and administrative law authorities; see Authorities Considered above)

12. Relationship with Existing Jurisprudence

Extends and applies the necessity/adequacy framework of Nubian Rights Forum to private-sector biometric collection, and is the first Kenyan High Court authority squarely addressing consent vitiated by financial/cryptocurrency inducement. Clarifies and narrows the exhaustion doctrine developed in *Kweri v Beehive Media* and *AK v Joyce Njoki Ngigi* by identifying a category of litigant — non-data-subject public-interest applicants — to whom the section 56 mechanism simply does not apply, distinguishing those earlier cases (which involved data subjects with direct access to that mechanism).

13. Practical Implications

Data Controllers

Any inducement (cash, tokens, discounts) offered in exchange for personal data — especially biometric data — requires careful consent-design review; blanket, indefinite consents are non-compliant.

Data Processors

Cross-border processors must obtain a Data-Commissioner adequacy determination, or an alternative lawful transfer mechanism, before moving biometric data outside Kenya.

Data Protection Officers

DPIAs are not optional for biometric enrolment programmes; a DPO should treat s.31 compliance as a gating requirement before any Orb-style rollout.

Public Bodies

The ODPC's enforcement directions must be treated as binding pending compliance, not as a negotiating position; non-compliance materially strengthens a subsequent judicial review case against the controller.

Advocates

Counsel for public-interest litigants now have clear authority that the exhaustion doctrine cannot be deployed to bar applicants who are structurally excluded from the s.56 mechanism.

Regulators

The judgment validates parallel exercise of ODPC enforcement powers and High Court judicial review where enforcement has stalled or been defied.

14. Compliance Checklist

- ☐ Register as a data controller/processor before commencing collection of sensitive personal data.
- ☐ Conduct and document a DPIA before biometric enrolment programmes commence.
- ☐ Design consent flows that are specific to each processing purpose and free from inducement-driven pressure, particularly for economically vulnerable populations.
- ☐ Obtain a Data-Commissioner adequacy determination (or equivalent lawful basis) before any cross-border transfer of biometric data.
- ☐ Comply immediately and fully with ODPC restriction/enforcement directives; document compliance steps.
- ☐ Confirm regulatory (e.g., type-approval) compliance for data-capture hardware before deployment.

CASE DIGEST NO. 03

K v BEEHIVE MEDIA LIMITED; CAPWEL INDUSTRIES LIMITED (INTERESTED PARTY)

[2023] KEHC 2684 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division

1. Case Information

Case Name	K v Beehive Media Limited; Capwel Industries Limited (Interested Party)
Neutral Citation	[2023] KEHC 2684 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division
Judge(s)	A.C. Mrima, J
Date of Decision	31 March 2023
Case Number	Constitutional Petition E321 of 2021
Subject Area	Constitutional Law; Data Protection; Administrative Justice

Keywords	image rights; exhaustion doctrine; ODPC first port of call; Article 31(c)-(d); constitutional avoidance; jurisdiction
Editorial Classification	Constitutional Law · Data Protection · Administrative Law

2. Editorial Summary

The petitioner alleged the respondent published his photograph, without consent, in a social media advertisement for the interested party's products, breaching his privacy and dignity under Article 31. The central question was jurisdictional: could such a claim go directly to the High Court, or was the ODPC complaints mechanism the mandatory first port of call? The Court held the DPA was deliberately designed so Article 31(c)-(d) claims fall wholly within the Data Commissioner's jurisdiction, who may determine violations and award compensation but not interpret the Constitution — reserved exclusively to the High Court. Finding no exception to exhaustion established, the Court declined jurisdiction and dismissed the petition. This is a foundational authority on the mandatory character of ODPC first recourse.

4. Material Facts

The respondent published, on a Facebook page with approximately 168,576 active followers, an advertisement for the interested party's products bearing a caption in Swahili and featuring the petitioner's photograph, without his authorisation. The same image was subsequently published on the respondent's Twitter and Instagram pages, with 4,212 and 3,516 followers respectively. The petitioner alleged that the unauthorised commercial use of his image caused him to be linked without his knowledge or consent to the promotion of the interested party's products.

5. Issues for Determination

24. Whether the High Court could determine a claim of infringement of Article 31(c) and (d) before it was determined by the Office of the Data Protection Commissioner.
25. Whether the Data Commissioner has jurisdiction to determine whether privacy rights in the Bill of Rights have been denied, violated, infringed or threatened.
26. Whether the Data Commissioner has jurisdiction to interpret the Constitution.
27. What constitutes a constitutional issue, and what is the nature of a constitutional petition.
28. What is the distinction between determining infringement of a Bill of Rights privacy right and interpreting the Constitution.

6. Holding

Issue	Holding
ODPC jurisdiction over Art. 31(c)-(d) claims	Yes — the Data Commissioner has jurisdiction to determine whether privacy rights have been denied, violated, infringed or threatened, and to award compensation.
Issue	Holding
ODPC jurisdiction to interpret the Constitution	No — constitutional interpretation is the exclusive preserve of the High Court under Article 165(3)(d).
High Court jurisdiction absent prior ODPC determination	Declined — the doctrine of exhaustion barred the Court from entertaining the Article 31 claim in the first instance.
Associated defamation claim	Not determined — its resolution was contingent on the outcome of the Article 31 claim, which the petitioner had not exhausted before the ODPC.

7. Court's Reasoning

A. The Deliberate Design of the Data Protection Act

The Court found, on a close reading of the Data Protection Act, a deliberate legislative design channelling all Article 31(c)-(d) claims through the Data Commissioner as first port of call, that position displaceable only where a petitioner establishes one of the recognised exceptions to the exhaustion doctrine.

B. Determining Infringement vs Interpreting the Constitution

The Court drew a considered distinction: applying a settled Bill of Rights provision to a given set of facts to determine whether it has been infringed is not, in itself, an exercise of constitutional interpretation, and Parliament may lawfully delegate that fact-application function to a quasi-judicial body such as the ODPC. Constitutional interpretation proper — determining the meaning, scope and application of a constitutional provision as a matter of binding legal principle, informed by the established canons of constitutional interpretation and, where relevant, comparative jurisprudence — remains the exclusive judicial function of the High Court under Article 165(3)(d). As a public officer bound by Article 3 to uphold the Constitution, the Data Commissioner may and must determine whether conduct violates Article 31(c)-(d) rights, without thereby usurping the High Court's interpretive role.

C. Disposition

No exception to the exhaustion doctrine having been demonstrated, the Court declined jurisdiction over the Article 31 claim. Because the constitutional-defamation claim was, in the Court's analysis, contingent on a prior finding on the privacy claim, its determination was correspondingly deferred, and the petition was dismissed in its entirety.

8. Ratio Decidendi

29. The Data Protection Act channels all claims arising from alleged infringement of Article 31(c) and (d) of the Constitution through the Office of the Data Protection Commissioner as the mandatory first port of call.
30. The Data Commissioner has jurisdiction to determine whether privacy rights under the Bill of Rights have been denied, violated, infringed or threatened, and to award compensation.
31. The Data Commissioner has no jurisdiction to interpret the Constitution; that function is the exclusive preserve of the High Court under Article 165(3)(d).
32. Applying a Bill of Rights provision to determine infringement on a given set of facts is distinct from, and does not amount to, constitutional interpretation.

9. Obiter Dicta

The Court's broader discussion of the anatomy of a constitutional petition and the requirements of Articles 22 and 258 on locus standi, while a useful restatement, was not strictly necessary to the jurisdictional disposition.

3. Jurisprudential Context & Procedural History

Decided in March 2023, once the ODPC was fully operational, this judgment establishes the now standard exhaustion analysis applied throughout the subsequent image-rights line (*Kirimi, AK v Joyce Njoki, Ngunjiri, Otieno*), all citing it for mandatory ODPC first recourse. It draws the enduring distinction between determining whether a privacy right was infringed (delegable to the Data Commissioner) and interpreting the Constitution (reserved to the High Court under Article 165(3)(d)). Constitutional Petition E321 of 2021 sought declaratory, injunctive and damages relief for privacy/dignity violation alongside constitutional defamation; the Court addressed exhaustion as a threshold issue at full hearing rather than by preliminary objection.

10. Principles Established

- ODPC first recourse is mandatory for Article 31(c)-(d) claims, absent an established exception to exhaustion.
- There is a legally significant distinction between fact-application (delegable) and constitutional interpretation (non-delegable, exclusive to the High Court).
- A claim contingent on an unresolved privacy determination will not be separately adjudicated ahead of that determination.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 3, 10, 22, 165(3)(b), 165(3)(d), 258

Statutes

- Data Protection Act, 2019

Regulations

- Constitution of Kenya (Protection of Rights and Fundamental Freedoms) Practice and Procedure Rules, 2013 (the Mutunga Rules)

Cases

- — (jurisdictional analysis grounded principally in constitutional and statutory text)

12. Relationship with Existing Jurisprudence

The foundational exhaustion-doctrine authority for Kenyan Article 31 privacy/image-rights litigation, subsequently applied in *Kirimi v Mubi Changa, AK & another v Joyce Njoki Ngigi, Ngunjiri v Kiambi and Otieno v University of Nairobi*. Distinguished in *Mathenge v Julie Njuhi Muiruri*, where the petition also invoked Articles 28 and 40 (dignity and property), rights not confined to the DPA's Article 31(c)-(d) remit, permitting the High Court to retain jurisdiction.

13. Practical Implications

Data Controllers

Controllers facing an Article 31(c)-(d) claim brought directly in the High Court, without prior ODPC recourse, have a strong jurisdictional defence.

Data Processors

Processors should route privacy grievances received directly from data subjects toward the ODPC complaints channel rather than assuming High Court litigation risk.

Data Protection Officers

DPOs should advise complainants of the mandatory ODPC first-instance route for pure Article 31(c)-(d) claims.

Public Bodies

Public bodies are equally bound by the exhaustion requirement when sued on Article 31(c)-(d) grounds.

Advocates

Counsel drafting a privacy petition should plead any available exception to exhaustion expressly and evidentially, or add non-Article-31 heads of claim (dignity, property) if genuinely available, to preserve High Court jurisdiction.

Regulators

The judgment confirms and reinforces the ODPC's primary adjudicative role over privacy complaints, with attendant resourcing and capacity implications.

14. Compliance Checklist

- ☐ Before responding substantively to a privacy claim filed in the High Court, assess whether it is confined to Article 31(c)-(d) and whether ODPC recourse was exhausted.

- ☐ Where advising a complainant, direct pure image/privacy complaints to the ODPC in the first instance.

- ☐ Where multiple constitutional rights are engaged (e.g., dignity, property), assess separately whether exhaustion applies to each.

- ☐ Document any exception to exhaustion relied upon (constitutional interpretation, futility, inadequate alternative remedy) with supporting evidence.

K & ANOTHER V MOBI CHANGA LIMITED

[2023] KEHC 25772 (KLR) • High Court of Kenya at Meru

1. Case Information

Case Name	K & another v Mobi Changa Limited
Neutral Citation	[2023] KEHC 25772 (KLR)
Court	High Court of Kenya at Meru
Judge(s)	T.W. Cherere, J
Date of Decision	23 November 2023
Case Number	Civil Suit E038 of 2021
Subject Area	Data Protection; Civil Practice and Procedure
Keywords	image rights; exhaustion doctrine; commercial advertisement; unauthorised use of photograph; stock imagery
Editorial Classification	Data Protection · Civil Procedure

2. Editorial Summary

Two advocates sued a fundraising platform for using their Facebook photograph, without consent, in an advertisement later linked to a fraudulent fundraising campaign, claiming breach of dignity and privacy. The defendant denied unlawfully retrieving the image, asserting it sourced the photo from a licensed stock imagery site with attribution. Before reaching the merits, the Court addressed the defendant's threshold argument that the suit offended exhaustion, the DPA mandating that Article 31 claims first go to the Data Commissioner, with a right of appeal to the High Court under section 64. Finding no exception established, and applying *Speaker of the National Assembly v Karume* on strict adherence to statutory procedure, the Court held it lacked jurisdiction and struck out the suit with costs, without reaching the image-rights merits.

4. Material Facts

The plaintiffs, husband and wife advocates practising in Meru, alleged that a photograph of them, originally posted by the first plaintiff on Facebook, was subsequently used by the defendant in a commercial advertisement for its M-Changa fundraising product, and was further used, without authorisation, in connection with an Instagram fundraising campaign ('Baby Shower Sisters') that turned out to be a scam. The defendant denied unlawfully retrieving the image, asserting it had sourced it from a stock imagery website with the consent of that website and attribution to the photographer, one Bob Marjawar, and had taken the image down upon receipt of the plaintiffs' demand notice.

5. Issues for Determination

1. Whether the plaintiffs' suit offends the doctrine of exhaustion.
2. Whether the deponent had authority to testify on behalf of the defendant.
3. Whether the defendant published the plaintiffs' photographic image for commercial purposes.
4. Whether the defendant had consent to publish the plaintiffs' photographic image.
5. Whether the plaintiffs were entitled to the orders sought.
6. Who bears the costs of the suit.

6. Holding

Issue	Holding
Exhaustion	Yes, the suit offended the doctrine of exhaustion — the Data Protection Act provided a mandatory first-instance mechanism the plaintiffs had not used.
Remaining issues	Not determined — the finding on exhaustion was dispositive; determining the remaining issues was held to be 'an exercise in futility'.
Costs	Awarded to the defendant.

7. Court's Reasoning

A. The Statutory Scheme as a Complete Code

The Court traced the Data Protection Act's preamble (giving effect to Article 31(c)-(d)), its object clause (section 3), the Data Commissioner's investigative function (section 8(1)(f)), power to determine compensation (section 65), power to issue enforcement notices (section 58), and the statutory right of appeal to the High Court (section 64), concluding that the Act comprehensively provides both the process for determination and the remedies available for a claim of the kind pleaded.

B. Strict Adherence to Special Statutory Procedure

Applying *Speaker of the National Assembly v Karume*, the Court held that where a clear procedure for redress is prescribed by statute, that procedure must be strictly followed, and a litigant who defies it must bear the consequences of non-compliance. The plaintiffs had not demonstrated that their claim could not be adequately determined under the Data Protection Act, nor established any exception to exhaustion.

C. Disposition

Lacking procedural jurisdiction, the Court declined to determine the remaining issues — including the central factual dispute over the source and authorisation of the image — and struck out the suit with costs.

8. Ratio Decidendi

7. Any party to litigation — not only the party resisting a claim on the merits — may raise the doctrine of exhaustion where a mandatory statutory dispute-resolution mechanism exists and has not been used.
8. A claim substantially concerning unauthorised use of a person's photographic image for commercial purposes falls within the Data Protection Act's mandatory ODPC-first regime.
9. Failure to demonstrate an exception to exhaustion results in the court declining jurisdiction, without reaching the substantive merits.

9. Obiter Dicta

None material — the judgment is confined to the jurisdictional question.

3. Jurisprudential Context & Procedural History

Decided shortly after, and expressly following, *Kweri v Beehive Media*, this judgment consolidates exhaustion as the standard threshold objection in image-rights litigation, extending it to a case where the defendant (not the plaintiff) raised it — illustrating any party may invoke the doctrine. Filed as Civil Suit

E038 of 2021 in the High Court at Meru, the exhaustion objection was determined as a threshold issue at full hearing, in place of the substantive claim.

10. Principles Established

- The exhaustion doctrine applies with equal force in ordinary civil suits (not only constitutional petitions) where the underlying grievance is one of unauthorised processing of personal data/image.
- A defendant may successfully strike out a suit on exhaustion grounds even where genuine factual disputes as to liability remain unresolved.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Article 159

Statutes

- Data Protection Act, 2019 — ss. 3, 5, 8(1)(f), 56, 58, 64, 65 (preamble)

Cases

- Speaker of the National Assembly v Karume [1992] KLR 21
- Mwanzia v Rhodes [2023] KEHC 2688 (KLR)
- Kweri v Beehive Media Limited; Capwel Industries Limited [2023] KEHC 2684 (KLR)

12. Relationship with Existing Jurisprudence

Applies and consolidates *Kweri v Beehive Media* in an ordinary civil (rather than constitutional petition) context, confirming that the exhaustion doctrine operates across procedural forms wherever the underlying claim is one of Article 31(c)-(d) infringement.

13. Practical Implications

Data Controllers

A commercial user of a third-party image sued in an ordinary civil suit (rather than by constitutional petition) may still successfully raise exhaustion as a complete defence.

Data Processors

Sourcing images from licensed stock platforms with attribution remains a relevant factual defence on the merits, though the Court did not reach it here.

Data Protection Officers

Advise business units that even prompt take-down of a disputed image does not moot a claim, but proper exhaustion procedure may nonetheless bar litigation.

Public Bodies

Not directly engaged.

Advocates

A defence advocate facing an image-rights suit filed directly in court should consider exhaustion as a threshold, potentially dispositive, objection.

Regulators

Reinforces the ODPC's role as the primary forum for adjudicating image-rights/consent disputes.

14. Compliance Checklist

- ☐ On receipt of a demand letter alleging unauthorised use of a person's image, assess whether the complainant has approached the ODPC.
- ☐ Where sourcing images from stock platforms, retain licence and attribution documentation to support a consent/lawful-basis defence should the matter proceed to determination.
- ☐ Take down disputed content promptly, without treating this as full resolution of potential liability.

CASE DIGEST NO. 05

AK & ANOTHER v JOYCE NJOKI NGIGI T/A KORA SPA

[2023] KEHC 1126 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division

1. Case Information

Case Name	AK & another v Joyce Njoki Ngigi t/a Kora Spa
Neutral Citation	[2023] KEHC 1126 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division
Judge(s)	A.C. Mrima, J
Date of Decision	23 February 2023
Case Number	Constitutional Petition E468 of 2021
Subject Area	Data Protection; Constitutional Law; Children's Data
Keywords	minor; photograph without consent; social media publication; exhaustion doctrine; constitutional avoidance
Editorial Classification	Data Protection · Constitutional Law

2. Editorial Summary

A father, on behalf of his minor son, petitioned after a spa's staff photographed the child during a barber visit and, without explanation or consent, published it on the spa's Facebook and Instagram accounts. The respondent raised a preliminary objection that sections 56–65 DPA provided a complete alternative dispute mechanism, invoking constitutional avoidance. The petitioners argued their claim fell outside the Act's remit. Surveying exhaustion's two established exceptions — inadequacy of the alternative forum and matters verging on constitutional interpretation — the Court found the dispute fell wholly within the DPA, which provided both process and remedy. No exception established, the preliminary objection was upheld and the petition struck out with costs.

4. Material Facts

On 11 September 2021, the second petitioner (a minor) attended the respondent's spa for barber services accompanied by his father, the first petitioner. Staff photographed them without explaining the purpose of the photographs. On 16 September 2021, the petitioners discovered the photographs had been published on the respondent's Facebook and Instagram accounts under a promotional caption. The petitioners' attempts to obtain an explanation from the respondent were unsuccessful.

5. Issues for Determination

10. Whether the Data Protection Act ousts the High Court's jurisdiction over the petitioners' claim in favour of the Office of the Data Protection Commissioner.
11. Whether any recognised exception to the doctrine of exhaustion applied on the facts pleaded.

6. Holding

Issue	Holding
Ouster of jurisdiction	Yes — the dispute, as pleaded, fell wholly within the Data Protection Act's remit, which provided both the process for determination and the available remedies.
Exception to exhaustion	None established — the petitioners did not demonstrate any recognised exception.

7. Court's Reasoning

A. The Two Established Principles Governing Exhaustion

The Court restated two guiding principles: first, that the High Court may in exceptional circumstances permit a suit to proceed where exhaustion would not serve constitutional values, particularly where the matter verges on constitutional interpretation in a novel area or engages an important constitutional value; and second, that the jurisdiction to hear valid grievances from parties lacking adequate audience before a statutory forum must not be ousted, statutory ouster provisions being construed restrictively.

B. Application to the Facts

The petitioners' complaint — unauthorised publication of their images on social media without consent, framed as a breach of Article 31 — was found to fall within the Data Protection Act's preamble (giving effect to Article 31(c)-(d)), its provisions on data subject rights, complaint investigation, and compensation. The Act, in the Court's assessment, wholly provided for the dispute and its remedies, leaving no gap for the High Court's original jurisdiction to fill.

C. Disposition

The preliminary objection was upheld and the petition struck out with costs, the Court finding the doctrine of exhaustion a complete bar to the further exercise of its jurisdiction on the pleaded facts.

8. Ratio Decidendi

12. A claim concerning the unauthorised photographing and publication of a person's (including a minor's) image, framed as breach of Article 31, falls within the Data Protection Act's mandatory ODPC-first regime absent an established exception.
13. The exceptions to exhaustion — genuine constitutional interpretation questions, inadequacy of the statutory forum — must be affirmatively pleaded and established; they are not presumed.

9. Obiter Dicta

The Court's extended survey of exhaustion-doctrine authorities (Communication Commission of Kenya v Royal Media Services; Benson Ambuti Adeg v Kibos Distillers; Kenya Ports Authority v William Odhiambo Ramogi; Fleur Investments v Commissioner of Domestic Taxes) constitutes a useful consolidated statement of the doctrine but exceeds what was strictly necessary for disposition.

3. Jurisprudential Context & Procedural History

Decided one month before *Kweri v Beehive Media* (citing similar reasoning), this is an early, detailed articulation of the exceptions to exhaustion in the data protection context, drawing on *Kenya Ports Authority v William Odhiambo Ramogi* and *Fleur Investments v Commissioner of Domestic Taxes* to

identify when a court may bypass a specialised statutory mechanism. Constitutional Petition E468 of 2021 was met with a Notice of Preliminary Objection dated 15 November 2021, determined by ruling without a merits hearing; an earlier, similarly framed petition (E411 of 2021) had been withdrawn after the same jurisdictional objection was raised.

10. Principles Established

- Minors' images, like adults', fall within the Data Protection Act's protective and procedural regime.
- A prior withdrawn petition raising the same jurisdictional objection is a relevant, though not independently determinative, contextual factor.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 21, 31(c)-(d)

Statutes

- Data Protection Act, 2019 — ss. 2, 30, 56–65

Regulations

- Constitution of Kenya (Protection of Rights and Fundamental Freedoms) Practice and Procedure Rules, 2013 (the Mutunga Rules)

Cases

- Communication Commission of Kenya & 5 others v Royal Media Services Ltd & 5 others [2014] eKLR (constitutional avoidance)
- Benson Ambuti Adegga & 2 others v Kibos Distillers Limited & 5 others [2020] eKLR (judicial restraint)
- Kenya Ports Authority v William Odhiambo Ramogi & 8 others [2019] eKLR
- Fleur Investments Limited v Commissioner of Domestic Taxes & another [2018] eKLR
- Speaker of National Assembly v Njenga Karume (1990–1994) EA 546
- Republic v Independent Electoral and Boundaries Commission ex parte National Super Alliance (NASA) Kenya & 6 others [2017] eKLR
- Moffat Kamau and 9 others v Aelous (K) Ltd and 9 others
- Night Rose Cosmetics (1972) Ltd v Nairobi County Government & 2 others [2018] eKLR

12. Relationship with Existing Jurisprudence

A close companion authority to *Kweri v Beehive Media* (decided a month later on very similar reasoning), and cited by the later *Ndirangu v Nation Media Group* and *Mathenge v Julie Njuhi Muiruri* lines of cases as a standard exhaustion authority.

13. Practical Implications

Data Controllers

Businesses using customer or visitor photographs for promotional purposes should obtain explicit, purpose-specific consent before capture, not merely before publication.

Data Processors

Photographing a data subject without explaining the purpose is itself a compliance red flag, independent of subsequent publication.

Data Protection Officers

Where a business photographs members of the public (including minors) for any promotional purpose, a documented consent process at the point of capture is advisable.

Public Bodies

Not directly engaged, though the exhaustion analysis applies equally to public-sector data controllers.

Advocates

Counsel should consider whether a withdrawal-and-refiling strategy (as attempted here) risks prejudicing a client's exhaustion position.

Regulators

Reinforces the ODPC as the primary forum even for grievances involving minors.

14. Compliance Checklist

- ☐ Obtain explicit consent before photographing any client, including minors (via parent/guardian), for any purpose beyond immediate service delivery.
- ☐ Clearly explain the purpose of any photograph taken at the point of capture.
- ☐ Obtain separate, purpose-specific consent before using any client image for promotional or marketing purposes.
- ☐ Respond substantively to consent/data-use queries from clients or guardians promptly.

CASE DIGEST NO. 06

M v JULIE NJUHI MUIRURI (T/A HUMAN HAIR CENTER)

[2024] KEHC 6970 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division

1. Case Information

Case Name	M v Julie Njuhi Muiruri (t/a Human Hair Center)
Neutral Citation	[2024] KEHC 6970 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division
Judge(s)	L.N. Mugambi, J
Date of Decision	13 June 2024
Case Number	Petition E032 of 2023
Subject Area	Constitutional Law; Data Protection; Personality/Image Rights
Keywords	image rights; personality rights; commercial exploitation; exhaustion doctrine exception; dignity; property; damages quantum
Editorial Classification	Constitutional Law · Data Protection

2. Editorial Summary

A contracted clothing model discovered her photographs, taken for her employer's brand, had been republished without consent by the respondent to advertise unrelated hair products on Instagram, resulting in her dismissal after she complained. She petitioned for violation of dignity, privacy and property under Articles 28, 31 and 40, and damages. The respondent raised a preliminary objection on exhaustion. The Court held that because the petition invoked rights (dignity, property) beyond the narrow Article 31(c)-(d) remit of the DPA, exhaustion did not bar the claim, and proceeded to the merits. Applying the personality-rights test (identifiability, intentional use, commercial gain), it found the respondent liable, awarding Kshs 240,000 damages plus costs — a significant authority on both the limits of exhaustion and image-misuse damages quantum.

4. Material Facts

The petitioner, a clothing model under an exclusive one-year modelling contract with New Level Collection Limited, discovered in June 2022 that photographs of her had been published, without her consent, on the respondent's Instagram page to advertise the respondent's hair products (priced between Kshs 33,000 and 52,000). Upon complaint to her employer, the employer terminated her contract rather than address the unauthorised use. The respondent contended that the petitioner's contract with her employer had granted rights of image use extending to the respondent, a marketing collaborator, and that the petitioner had herself used the disputed images on her own social media, tagging the respondent's page.

5. Issues for Determination

14. Whether the petition offended the doctrine of exhaustion given its reliance on Article 31 and the Data Protection Act.
15. Whether the petitioner's rights under Articles 28 (dignity), 31 (privacy) and 40 (property) were violated by the respondent's unauthorised commercial use of her image.
16. What damages, if any, were payable for the violation.

6. Holding

Issue	Holding
Exhaustion	Not a bar — the petition invoked rights (dignity, property) beyond the Data Protection Act's Article 31(c)-(d) remit, preserving High Court jurisdiction.
Violation of Articles 28, 31 and 40	Established — the respondent's unauthorised commercial exploitation of the petitioner's image violated her right to dignity; the contractual relationship between the petitioner and her employer did not extend to the respondent.
Issue	Holding
Damages	Kshs 240,000 awarded, together with costs of the petition.

7. Court's Reasoning

A. Exhaustion Does Not Bar a Petition Raising Rights Beyond Article 31(c)-(d)

The Court observed that while the Data Protection Act empowers the Data Commissioner to receive and investigate complaints of infringement under the Act, its preambular clause confines the Act's purpose to giving effect to Article 31(c) and (d); it does not purport to comprehensively occupy the field of an 'array of other related rights' such as dignity (Article 28) and property (Article 40), which the petitioner had also pleaded. The gravamen of the petition being the commercial exploitation of the petitioner's personality rights — not merely an Article 31(c)-(d) data-processing grievance — the Court held it was properly seized of jurisdiction under Article 165(3)(b).

B. Elements of a Personality/Image Rights Claim

Adopting the framework from *Jessica Clarice Wanjiru v Davinci Aesthetics* (itself drawing on the Canadian case *Krouse v Chrysler Canada Ltd* and *Athans v Canadian Adventure Camps*), the Court identified the elements of a personality-rights claim as: use of a protected attribute (the claimant's identifiable image or likeness); use for an exploitative or commercial purpose (as distinct from news reporting or other expressive use connected to a legitimate public interest); and absence of consent. On the facts, the petitioner was clearly identifiable; the images were used to market a distinct commercial product for profit; and the contractual consent given to her employer did not, absent an express assignment, extend to a third-party marketing collaborator.

C. Dignity as the Foundation of the Bill of Rights

Citing *Ahmed Issack Hassan v Auditor General* and the Indian case *Francis Coralie Mullin v Administrator, Union Territory of Delhi*, the Court treated the right to dignity under Article 28 as foundational to the enjoyment of all other Bill of Rights protections, finding that treating the petitioner 'as an object for promoting sales' without her knowledge or consent was inherently belittling to her dignity, independent of any separate privacy or property analysis.

D. Quantum of Damages

The Court surveyed comparable awards — *MWK & another v Attorney General & 3 others* [2017] eKLR (Kshs 4,000,000, a materially different fact pattern); *GSN v Nairobi Hospital & 2 others* [2020] eKLR (Kshs 2,000,000 for breach of privacy); and *Dhabiti Sacco Limited v Sharon Nyaga* (Kshs 1,500,000, for publication of the claimant's photograph in an annual calendar) — before assessing the specific factors on the facts before it: the modest social media engagement attracted by the three impugned images (31–38 'likes' each, limited evidenced views), the respondent's prompt removal of the images upon complaint, and the petitioner's own prior indication that she would have charged a fee of Kshs 6,000 per post for authorised use. On this basis, the Court assessed damages at Kshs 240,000, together with costs.

8. Ratio Decidendi

17. The doctrine of exhaustion does not operate as a complete bar to a petition that invokes constitutional rights beyond Article 31(c)-(d) (such as dignity under Article 28 or property under Article 40), where those additional rights form part of the gravamen of the claim, because the Data Protection Act's purpose is confined to giving effect to Article 31(c)-(d).
18. A claim for unauthorised commercial use of a person's image requires proof of: (i) use of an identifiable protected attribute; (ii) an exploitative or commercial (as opposed to expressive/public interest) purpose; and (iii) absence of consent.
19. Consent given to one commercial party for use of a person's image does not extend to an unrelated third party absent an express assignment.
20. Damages for unauthorised commercial exploitation of a person's image are assessed contextually, having regard to the scale of publication/engagement, promptness of remedial takedown, and any evidence of the claimant's own valuation of authorised use.

9. Obiter Dicta

The Court's extended discussion of the common-law tort of 'passing off' as the historical root of publicity rights, while illuminating, was not strictly necessary to the disposition given the constitutional (Article 28/31/40) framing of the claim.

3. Jurisprudential Context & Procedural History

Decided by Mugambi, J (who later decided *Ngunjiri*, *Otieno* and *St Joseph Health Care*), this sits in productive tension with *Kweri* and *AK v Joyce Njoki*: where those struck out Article 31(c)-(d)-only petitions, Mathenge identifies additional justiciable heads (Article 28 dignity, Article 40 property) preserving jurisdiction. It imports, via *Jessica Clarice Wanjiru v Davinci Aesthetics*, the Canadian personality-rights framework (*Krouse v Chrysler Canada*; *Athans v Canadian Adventure Camps*) as the Kenyan test. Petition E032 of 2023 was met with a Notice of Preliminary Objection on exhaustion grounds, determined together with the merits in a single judgment.

10. Principles Established

- Consent is entity-specific: authorisation to one commercial actor does not authorise use by another.
- Unauthorised commercial exploitation of a person's image is, independent of any privacy analysis, a violation of the dignity guaranteed under Article 28.

- Damages quantum for image misuse in Kenya, as of this judgment, ranges roughly from Kshs 240,000 (limited-reach, promptly remedied use) to Kshs 2,000,000+ (broader or more egregious misuse).

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 28, 31(c), 40, 165(3)(b)

Statutes

- Data Protection Act, 2019 — ss. 8(1)(f), 56, 64, 65

Cases

- Mukisa Biscuit Manufacturing Co Ltd v West End Distributors [1969] EA 696
- Hassan Ali Joho & another v Suleiman Said Shahbal & 2 others [2014] eKLR
- Geoffrey Muthinja Kabiru & 2 others v Samuel Munga Henry & 1756 others [2015] eKLR
- Jessica Clarice Wanjiru v Davinci Aesthetics Reconstruction and 20 others [2017] eKLR
- Ahmed Issack Hassan v Auditor General [2015] eKLR
- MWK & another v Attorney General & 3 others [2017] eKLR
- GSN v Nairobi Hospital & 2 others [2020] eKLR
- Dhabiti Sacco Limited v Sharon Nyaga, Civil Appeal No. E083 of 2021 (High Court at Meru)

Comparative Jurisprudence

- Krouse v Chrysler Canada Ltd (1973) 13 CPR (2d) 28 (Canada)
- Athans v Canadian Adventure Camps (1977) CanLII 1255 (Canada)
- Francis Coralie Mullin v Administrator, Union Territory of Delhi (1981) SCR (2) 516 (India)

12. Relationship with Existing Jurisprudence

Distinguishes and narrows the exhaustion doctrine established in *Kweri v Beehive Media* and *AK v Joyce Njoki Ngigi*, identifying an exception where the petition genuinely engages constitutional rights beyond Article 31(c)-(d). Establishes, alongside *GSN v Nairobi Hospital* and *Dhabiti Sacco v Sharon Nyaga*, a developing Kenyan quantum scale for image-misuse damages, later applied in *St Joseph Health Care v Mbutia*.

13. Practical Implications

Data Controllers

Marketing collaborations involving a third party's contracted models or brand ambassadors require independent, express consent from the individual — reliance on a head contractor's rights is insufficient.

Data Processors

A marketing agent or collaborator using a model's image on behalf of a client should verify the scope of the underlying image-rights authorisation before republishing.

Data Protection Officers

Where a petition pleads dignity or property rights alongside Article 31, DPOs/counsel should not assume the exhaustion doctrine will operate as a complete bar.

Public Bodies

Not directly engaged, though the personality-rights framework applies equally where a public body commercially uses an individual's image.

Advocates

Pleading dignity (Article 28) and/or property (Article 40) alongside Article 31, where genuinely engaged by the facts, is a legitimate and now judicially recognised route to preserve High Court jurisdiction over an image-rights claim.

Regulators

The case illustrates a category of dispute (commercial image exploitation with dignitary/proprietary dimensions) that may properly proceed in the High Court in parallel with, rather than exclusively through, the ODPC.

14. Compliance Checklist

- ☐ Obtain express, entity-specific consent before using any individual's image in a marketing collaboration with a third party.
- ☐ Do not assume a model's or employee's contract with one company extends image rights to that company's business partners.
- ☐ Promptly remove any disputed image upon complaint — evidenced promptness materially affects damages exposure.

- ☐ Document the commercial context (products advertised, reach/engagement) of any use of an individual's image for future defensibility.
- ☐ Where litigating an image-rights claim, assess whether the petition's constitutional framing (Articles 28/31/40) affects the availability of an exhaustion defence.

M v NATIONAL COUNCIL FOR LAW REPORTING

[2022] KEHC 15471 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division

1. Case Information

Case Name	M v National Council for Law Reporting
Neutral Citation	[2022] KEHC 15471 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division
Judge(s)	H.I. Ong'udi, J
Date of Decision	18 November 2022
Case Number	Petition E394 of 2020
Subject Area	Data Protection; Open Justice; Media & Publication
Keywords	Kenya Law; open justice; anonymisation; right to be forgotten; publication exemption; section 52 DPA; court reporting
Editorial Classification	Data Protection · Media & Journalism

2. Editorial Summary

A former HR officer, whose unfair-dismissal complaint had led to criminal proceedings against her employer's directors, discovered the resulting judgment — naming her — remained permanently searchable on the Kenya Law website, allegedly harming her employment prospects. She petitioned for its removal or anonymisation, alleging breach of life, dignity and privacy rights. Kenya Law defended its publication as within its statutory mandate, relying on the DPA's public-interest publication exemption read with its own Anonymisation Guidelines, which assess requests individually and are not applied retroactively absent a court order. The Court found no evidence of actual harm — no rejected application

patrick@dataprivacyadvocates.co.ke

attributable to the judgment — and held the exemption justified continued publication. The petition was dismissed. This is Kenya's leading authority balancing open justice against an asserted right to be forgotten.

4. Material Facts

The petitioner's employment with Nairobi Java House Limited was terminated in November 2014; her subsequent unfair-termination complaint to the Commissioner for Labour succeeded, leading the Commissioner to prefer criminal charges against the company's Chief Executive Officer and Human Resource Manager. Those officers filed Judicial Review Application No. 5 of 2015 at the Employment and Labour Relations Court, seeking to quash the criminal proceedings; the petitioner was not a party to that application, yet the resulting judgment, naming her, was published on the Kenya Law website and remained the top search result for her name, which she alleged had deterred prospective employers from engaging her services.

5. Issues for Determination

21. Whether the respondent's continued publication of the judgment, naming the petitioner, violated her constitutional rights under Articles 26 (life), 28 (dignity) and 31 (privacy).
22. Whether the petitioner was entitled to the orders sought (removal or anonymisation of the judgment).

6. Holding

Issue	Holding
Violation of Articles 26, 28 and 31	Not established — no evidence was adduced of any actual harm (e.g., a specific declined job application) attributable to the publication.
Entitlement to removal or anonymisation	No — the respondent's publication fell within the Data Protection Act's publication exemption and was consistent with its self-regulatory Anonymisation Guidelines.

7. Court's Reasoning

A. The Publication Exemption under Section 52

The Court accepted the respondent's position that, as a data controller/processor collecting data indirectly from public records for the purpose of preparing and publishing the Kenya Law Reports (its statutory mandate under section 3 of the National Council for Law Reporting Act), it fell within section 52's exemption from the ordinary principles of data processing for publication of literary or artistic material undertaken in the reasonable belief that publication is in the public interest, subject to compliance with any applicable self-regulatory code. The respondent's Kenya Law Anonymisation Guidelines (KLAG) — permitting redaction where required by court order, statute, or upon individualised, merits-based request in defined categories (e.g., sensitive cases, personal identifiers) — were found to constitute such a code, and the respondent's general practice of publishing judgments as received, absent a qualifying anonymisation request or court order, was found compliant.

B. Absence of Evidence of Harm

Citing the persuasive reasoning in *Emmanuel Mambo Oduoy v National Council for Law Reporting & 2 others* [2021] eKLR — where a similarly situated petitioner failed for want of evidence that any employer had actually declined to engage him because of a published judgment — the Court found the petitioner had made only general assertions that the publication was 'misleading and potentially damaging' without particularising who was misled, how, or adducing any evidence of an actual declined application.

C. No Violation of Articles 26, 28 or 31 Established

Absent evidence of actual harm, and given the applicability of the section 52 exemption, the Court found no violation of the rights to life, dignity or privacy, and dismissed the petition, declining to make an adverse costs order given the public-interest character of access-to-justice litigation.

8. Ratio Decidendi

23. The Data Protection Act's exemption for publication in the public interest under section 52 applies to statutory law-reporting bodies performing their public-interest mandate, subject to compliance with an applicable self-regulatory code.
24. A petitioner seeking removal or anonymisation of a published judgment on privacy grounds must adduce specific evidence of actual harm (e.g., an identified declined opportunity attributable to the publication); general assertions of reputational risk are insufficient.
25. A law-reporting body's individualised, merits-based, non-retroactive anonymisation policy, requiring a qualifying request or court order, is a legitimate exercise of its statutory mandate and does not itself breach the Data Protection Act.

9. Obiter Dicta

The Court did not need to, and did not, articulate a general Kenyan doctrine of a 'right to be forgotten'; the judgment should not be read as foreclosing a differently evidenced future claim (e.g., one demonstrating concrete reputational or economic harm, or a case involving sensitive personal data not falling within any KLAG exception).

3. Jurisprudential Context & Procedural History

Decided in November 2022, among the earliest Kenyan judgments to grapple with a de facto 'right to be forgotten' under the fledgling DPA, this remains the leading authority on open justice, law reporting, and data subject rights, establishing that section 52's publication exemption requires evidenced compliance with a self-regulatory code (here, Kenya Law's Anonymisation Guidelines) rather than operating as a formal defence alone. Petition E394 of 2020 was filed under Articles 19, 20, 26, 28 and 31 together with ss. 25, 26, 29, 30, 32, 34–36 DPA, proceeding to full hearing on affidavit evidence.

10. Principles Established

- Open justice and statutory law reporting constitute a recognised public-interest exemption from ordinary data processing principles.
- A self-regulatory anonymisation code, consistently applied, can satisfy the Data Protection Act's requirement that reliance on the public-interest publication exemption be compliant with an applicable code of practice.
- Actual, evidenced harm — not speculative or general reputational concern — is required to establish a privacy violation arising from continued publication of a named judgment.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 19, 20, 26, 28, 31

Statutes

- Data Protection Act, 2019 — ss. 25, 26, 29, 30, 31, 32, 34, 35, 36, 52

— National Council for Law Reporting Act — ss. 3, 19, 20

Regulations

— Kenya Law Anonymisation Guidelines (KLAG) — self-regulatory code of practice

Cases

- Anarita Karimi Njeru v R (1976–1980) KLR 1272 (specificity of constitutional pleading)
- Emmanuel Mambo Oduory v National Council for Law Reporting & 2 others [2021] eKLR

12. Relationship with Existing Jurisprudence

The leading Kenyan authority reconciling open justice/law reporting with data subject rights, and the direct precedent applied and followed in Emmanuel Mambo Oduory v National Council for Law Reporting; establishes an evidentiary threshold (demonstrated harm) that later privacy claimants against publishers will need to meet.

13. Practical Implications

Data Controllers

Law reporting and media bodies relying on the public-interest publication exemption should maintain, publish and consistently apply a self-regulatory anonymisation/redaction code.

Data Processors

Publishers should document the basis on which any anonymisation request is granted or declined, to demonstrate individualised, merits-based assessment.

Data Protection Officers

Petitioners and their advisers should be counselled that a bare assertion of reputational risk, without specific evidence of harm, is unlikely to succeed against a publisher relying on the section 52 exemption.

Public Bodies

Statutory bodies performing public-interest publication functions (court registries, law reporters, gazetteers) can rely on section 52, provided a consistent, documented policy governs any redaction requests.

Advocates

Counsel advising a client seeking removal of a published judgment should gather concrete evidence of harm (specific declined opportunities, correspondence) before litigating, and should first exhaust the publisher's own anonymisation request process.

Regulators

The ODPC and courts alike now have a template for assessing publication-exemption reliance: does a self-regulatory code exist, and was it properly applied?

14. Compliance Checklist

- ☐ Maintain a documented, publicly available anonymisation/redaction policy for any body publishing personal data in the public interest.
- ☐ Apply the policy consistently and non-retroactively, save where a court order or statute requires otherwise.
- ☐ Require and retain evidence of individualised assessment for each anonymisation request received.
- ☐ For claimants, gather and particularise specific evidence of harm (e.g., correspondence showing a declined opportunity) before petitioning for removal or anonymisation.

N v NATION MEDIA GROUP LIMITED & ANOTHER

[2024] KEHC 6981 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Civil Division

1. Case Information

Case Name	N v Nation Media Group Limited & another
Neutral Citation	[2024] KEHC 6981 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Civil Division
Judge(s)	J.N. Mulwa, J
Date of Decision	12 June 2024
Case Number	Civil Case E149 of 2020
Subject Area	Data Protection; Civil Practice and Procedure; Temporal Application of Statutes

Keywords	image rights; exhaustion doctrine; retrospectivity; operationalisation of the DPA; commercial publication
Editorial Classification	Data Protection · Civil Procedure

2. Editorial Summary

A ruling on a preliminary objection concerning the temporal reach of the DPA's exhaustion requirement. The plaintiff alleged a media group had, from 2013 through 2020, used her image without consent in commercial advertisements. The defendants objected on exhaustion grounds. The Court, noting the cause of action arose substantially before the Act's operationalisation through appointment of a Data Commissioner and implementing regulations (14 January 2021) — after the suit was filed — held a litigant cannot be barred from the ordinary courts where the statutory mechanism did not yet exist when her cause of action arose. The objection was dismissed with costs to the plaintiff, the Court confining its holding to claims predating full operationalisation.

4. Material Facts

The plaintiff alleged that from 2013 through 2020, the first defendant published, across its Business Daily, Daily Nation and East African titles, commercial telecommunications-related articles using her photographic image without consent, including an image of her on a rooftop near a satellite dish for which she had never granted authorisation (distinguishing it from images she acknowledged authorising for a separate beadwork-related commercial use). She contended the unauthorised use breached her constitutionally protected image and data rights.

5. Issues for Determination

26. Whether the High Court had jurisdiction to hear and determine the suit as filed, in view of section 64 of the Data Protection Act, 2019.
27. Who bears the costs of the preliminary objection.

6. Holding

Issue	Holding
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Jurisdiction	Yes — the exhaustion requirement did not apply because, at the time the cause of action arose and the suit was filed, the Data Protection Act's complaints and appellate mechanism was not yet operational (no appointed Data Commissioner, no implementing regulations).
Costs	Awarded to the plaintiff — the preliminary objection was dismissed.

7. Court's Reasoning

A. Statutory Enactment Is Not the Same as Operational Existence

The Court accepted, following Nubian Rights Forum's reasoning (as applied in *Okiya Omtata Okiiti & 4 others v Attorney General & others*), that a data protection statute must be accompanied by implementation infrastructure — an appointed Data Commissioner, registered controllers and processors, and enacted implementing regulations — before it can be treated as an operative legal framework. The

Data Protection Act was assented to on 25 November 2019 but, on the evidence, the Data Commissioner was appointed only on 1 November 2020, and the underpinning regulations (required by section 71(3) of the Act and Article 94(6) of the Constitution) were enacted only in 2021 — after the plaintiff's suit had already been filed.

B. Presumption Against Retrospective Effect

Applying the ordinary presumption that statutes operate prospectively (*Macharia & another v Kenya Commercial Bank* [2012] eKLR), the Court held the Act could not be given retrospective effect so as to require a litigant, whose cause of action substantially predated the Act's operationalisation, to have pursued a mechanism that did not then exist.

C. A Litigant Cannot Be Barred from a Remedy That Was Never Available

The Court reasoned that a litigant who, at the time of filing, had no functioning alternative statutory forum available to her could not fairly be penalised for having approached the ordinary courts under their inherent jurisdiction; to do otherwise would visit upon her the consequences of institutional delay attributable to other government agencies (the Cabinet Secretary's delay in operationalising the Act) rather than any fault of her own. The Court was careful to confine this reasoning to the specific temporal circumstances of the case, observing that a litigant whose cause of action arose after full operationalisation would face a materially different — and likely unsuccessful — argument against exhaustion.

8. Ratio Decidendi

28. The exhaustion doctrine cannot require a litigant to pursue a statutory dispute-resolution mechanism that was not operationally in existence (no appointed regulator, no implementing regulations) at the time her cause of action arose and her suit was filed.
29. A data protection statute's assent/commencement date is distinct from, and not determinative of, the date its dispute-resolution mechanism becomes operationally available for exhaustion purposes.
30. Statutes are presumed to operate prospectively; a data protection statute's exhaustion requirement will not ordinarily be applied retrospectively to bar claims predating its operational readiness.

9. Obiter Dicta

The Court's observation that a litigant filing after full operationalisation of the Act 'would have had a difficult time convincing the court' to depart from exhaustion is an important signal for future litigants but was not necessary to the disposition of this particular ruling.

3. Jurisprudential Context & Procedural History

Decided shortly after *Kirimi* and around the same period as *Mathenge*, this carves out a third, narrower exhaustion exception grounded in temporal non-existence of the statutory remedy, echoing Nubian Rights Forum's concern that a data protection statute requires adequate implementation infrastructure. Civil Case E149 of 2020 was met with a Preliminary Objection filed over three years after the suit was instituted (14

September 2020), on the footing that the intervening DPA now governed procedure; determined by ruling on written submissions.

10. Principles Established

- There is a meaningful legal distinction between a data protection statute's date of assent and its date of operational readiness for exhaustion purposes.
- Delay by the Executive in appointing a regulator or enacting implementing regulations does not prejudice a litigant's access to the ordinary courts for claims arising during that gap.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Article 94(6)

Statutes

- Data Protection Act, 2019 — ss. 64, 71(1), 71(3)

Regulations

- Data Protection (General) Regulations, 2021 (and related 2021 implementing regulations, enacted after suit filed)

Cases

- Speaker of National Assembly v Karume [1992] eKLR
- Bernard Murage v Fineserve Africa Limited & 3 others [2015] eKLR
- Kwere v Beehive Media Limited [2023] KEHC 2684 (KLR)
- Kibos Distillers Limited & 4 others v Benson Ambuti Adega & 3 others [2020] eKLR
- William Odhiambo Ramogi & 3 others v AG & 4 others [2020] eKLR
- Owners of Motor Vessel 'Lillian S' v Caltex Oil (Kenya) Ltd [1989] eKLR
- Macharia & another v Kenya Commercial Bank [2012] eKLR
- Okiya Omtata Okoiti & 4 others v AG & 4 others [2020] eKLR
- Republic v Registrar of Companies & 2 others, ex parte Schindler Limited [2020] eKLR
- Karaini Investment v National Land Commission & another [2018] eKLR
- Kenya Wildlife Service v Karura Bulle Kussen Galaato [2019] eKLR
- Karen Blixen Camp Limited v Kenya Hotels & Allied Workers Union [2018] eKLR

12. Relationship with Existing Jurisprudence

Applies the operationalisation principle from Nubian Rights Forum in a novel procedural context — as a temporal exception to the exhaustion doctrine — thereby qualifying the otherwise strict approach of *Kweri v Beehive Media* and *Kirimi v Mobi Changa* for claims predating full institutional readiness of the Data Protection Act.

13. Practical Implications

Data Controllers

Controllers defending image/data-rights claims with a pre-2021 cause of action should expect that an exhaustion-based preliminary objection is unlikely to succeed.

Data Processors

Historical (pre-operationalisation) data-processing grievances remain litigable directly in the ordinary courts.

Data Protection Officers

DPOs conducting historical liability audits should treat claims arising before January 2021 as falling outside the DPA's mandatory exhaustion regime.

Public Bodies

Confirms that institutional delay in establishing regulatory infrastructure has direct, adverse litigation-risk consequences for regulated entities, not merely administrative ones.

Advocates

Counsel resisting an exhaustion objection should plead and evidence the precise date the cause of action arose relative to the Data Commissioner's appointment (1 November 2020) and the relevant regulations' enactment (2021).

Regulators

A cautionary precedent underscoring the practical, litigation-relevant consequences of delay in operationalising a new regulatory regime.

14. Compliance Checklist

- ☐ When assessing exhaustion defences, establish precisely when the cause of action arose relative to the ODPC's operational readiness (post-January 2021).
- ☐ For claims spanning the pre- and post-operationalisation period, assess whether exhaustion applies to the post-2021 portion only.
- ☐ Do not assume that the DPA's 2019 assent date is the relevant date for exhaustion purposes.

O V UNIVERSITY OF NAIROBI & 8 OTHERS

[2026] KEHC 4814 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division

1. Case Information

Case Name	O v University of Nairobi & 8 others
Neutral Citation	[2026] KEHC 4814 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division
Judge(s)	L.N. Mugambi, J
Date of Decision	16 April 2026
Case Number	Petition E325 of 2023
Subject Area	Data Protection; Employment; Constitutional Law
Keywords	forum shopping; parallel proceedings; exhaustion; employment disciplinary process; unlawfully obtained evidence; ODPC pending complaint
Editorial Classification	Data Protection · Administrative Law

2. Editorial Summary

A dismissed university employee alleged investigators, including a police officer, seized his phone at gunpoint and extracted private data without consent or warrant, relied upon by the university to terminate him for gross misconduct. He petitioned alleging violation of dignity, privacy and fair hearing rights. The university's evidence indicated he had voluntarily surrendered his phone during an internal fraud investigation. Critically, he had already lodged an ODPC complaint over the same conduct, still under active investigation, before filing this petition. The Court held this constituted forum shopping and premature abandonment of the statutory process; allegations against the police officer separately fell within IPOA's mandate. Applying exhaustion and constitutional avoidance, the Court declined jurisdiction and dismissed the petition without reaching the merits.

4. Material Facts

Following a whistleblower report to the Vice-Chancellor alleging the petitioner's involvement in examination fraud (leakage, impersonation, and unauthorised alteration of results on the university's examination management system), investigators — including ICT and security personnel and a police officer — questioned the petitioner and, on his account, forcibly seized his phone and coerced its PIN from him; on the university's account, he cooperated voluntarily throughout, surrendering the device and

PIN to facilitate an ICT forensic review conducted per internal evidence-gathering guidelines. Data extracted included personal photographs, messages, emails and M-Pesa records. The petitioner was subsequently suspended, subjected to a disciplinary hearing, and his employment terminated approximately nine months before contract expiry; he alleged the university withheld the final evidence relied upon. He also lodged a complaint with the Central Police Station (which he alleged stalled) and a complaint with the Data Protection Commissioner, which remained pending when he filed the instant petition.

5. Issues for Determination

31. Whether the University's/Respondents' actions in accessing, extracting and relying upon the Petitioner's phone data without consent or warrant violated his rights under Articles 28, 31, 47 and 50(4) of the Constitution.
32. Whether the petition, filed while a complaint on the same facts remained pending before the Data Protection Commissioner, was properly before the High Court.

6. Holding

Issue	Holding
Jurisdiction / prematurity	Declined — filing the petition while the ODPC complaint remained pending constituted forum shopping and was premature; allegations against the police respondent independently fell within the IPOA's statutory mandate.
Issue	Holding
Merits (Articles 28, 31, 47, 50(4))	Not determined — the jurisdictional finding was dispositive, and the Court declined to consider the merits.

7. Court's Reasoning

A. Forum Shopping — Parallel Proceedings on the Same Facts

The Court found that the petitioner had properly lodged his complaint with the Data Protection Commissioner in the first instance — the statutory 'first port of call' under section 56 — but, rather than

awaiting the outcome within the ninety-day statutory investigation period under section 56(5), had prematurely abandoned that process and instituted parallel High Court proceedings on identical facts while the ODPC complaint remained live. This was found to constitute forum shopping, an independent basis for declining jurisdiction distinct from ordinary exhaustion analysis, particularly given the ODPC had confirmed it had already assumed jurisdiction and conducted a preliminary inquiry.

B. Deference to the Independent Policing Oversight Authority

As regards the allegations against the police officer respondent (intimidation, armed seizure), the Court held that the Independent Policing Oversight Authority Act vests IPOA with the statutory function of investigating complaints of disciplinary or criminal conduct by police officers and recommending appropriate action, including compensation. Citing *William Kabogo Gitau v Ferdinand Ndung'u Waititu*, the Court held that its own unlimited original jurisdiction under Article 165(3)(a) is not a substitute for the first-instance statutory mechanisms Parliament has established for such complaints, and that it would usurp IPOA's function to make findings on those allegations at first instance.

C. Disposition

Having found the petition offended the twin doctrines of constitutional avoidance and exhaustion, the Court declined jurisdiction and, considering it unnecessary to address any other issue, dismissed the petition with costs to the respondents without reaching the substantive rights allegations.

8. Ratio Decidendi

- 33. A data subject who lodges a complaint with the Data Protection Commissioner may not, while that complaint remains pending and under active investigation, commence parallel High Court proceedings on the same facts; doing so constitutes forum shopping and is premature.
- 34. Allegations of police misconduct arising in the course of a data-related grievance fall, in the first instance, within the statutory mandate of the Independent Policing Oversight Authority, not the High Court's original jurisdiction.
- 35. The exhaustion and constitutional-avoidance doctrines apply irrespective of the seriousness of the underlying factual allegations; severity of conduct alleged does not itself displace a mandatory statutory dispute-resolution mechanism.

9. Obiter Dicta

The Court's observations on the University's evidence of the petitioner's cooperation and consent during the ICT investigation, while extensively canvassed, were not part of the jurisdictional ratio and remain unresolved factual contentions for any future proceeding.

3. Jurisprudential Context & Procedural History

Decided in April 2026, one of the most recent judgments in this Volume, this confirms exhaustion (per Kweri) retains full force even against serious factual allegations — the doctrine turns on the character of the claim, not the severity of conduct. It develops the doctrine further by identifying 'forum shopping' — parallel proceedings during a pending statutory complaint — as an independent, aggravating ground for declining jurisdiction, extending analogous reasoning to police-conduct complaints routed through IPOA. Petition E325 of 2023, filed 4 September 2023 and amended 25 March 2025, proceeded to full hearing; the petitioner's parallel ODPC complaint (Commissioner joined as 2nd respondent) remained under active investigation throughout.

10. Principles Established

- Forum shopping — filing parallel proceedings while a statutory complaint is pending — is an independent, additional ground (beyond ordinary non-exhaustion) for a court to decline jurisdiction.
- Complaints against individual police officers arising within a broader data protection grievance should be channelled through IPOA in the first instance.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 28, 31, 47, 50(4), 165(3)(a)

Statutes

- Data Protection Act, 2019 — ss. 2, 3(c)-(e), 25, 26, 56
- Independent Policing Oversight Authority Act — s. 6(a)

Cases

- Gabriel Mutava & 2 others v Managing Director Kenya Ports Authority & another [2016] eKLR
- William Kabogo Gitau v Ferdinand Ndung'u Waititu [2016] eKLR

12. Relationship with Existing Jurisprudence

Extends the exhaustion doctrine developed in Kweri v Beehive Media by adding forum shopping as an independent basis for declining jurisdiction, and cross-applies analogous reasoning to police-conduct

complaints properly routed through IPOA, thereby generalising the 'specialised statutory body first' principle beyond the ODPC context alone.

13. Practical Implications

Data Controllers

Employers relying on digital forensic evidence obtained during an internal investigation should carefully document the employee's consent at each stage, given the ODPC's active jurisdiction over challenges to how that evidence was obtained.

Data Processors

ICT/security personnel conducting device forensics as part of a workplace investigation should follow (and be able to evidence) a documented, consent-based evidence-gathering protocol.

Data Protection Officers

Where an employee has already lodged an ODPC complaint on a workplace data issue, advise against parallel litigation on the same facts until the ODPC process concludes.

Public Bodies

Public employers facing simultaneous ODPC and IPOA-relevant complaints should expect the High Court to defer to those specialised bodies rather than adjudicate at first instance.

Advocates

Counsel should advise petitioners against filing parallel proceedings once a statutory complaint has been lodged; if the statutory body delays beyond its statutory timeframe, that delay itself may (though this judgment does not decide the point) found an exception to exhaustion.

Regulators

Reinforces the ODPC's function as the primary, active forum for workplace data-privacy grievances, with courts declining to duplicate its ongoing investigations.

14. Compliance Checklist

- ☐ Before filing a data protection-related petition, confirm no parallel ODPC complaint remains pending on the same facts.
- ☐ Where police conduct is implicated, consider IPOA as the appropriate first-instance forum.
- ☐ Document consent and cooperation at each stage of any internal digital-forensic investigation of an employee.

- ☐ Where an employee complaint is under active ODPC investigation, avoid commencing separate litigation until that process concludes or a recognised exception to exhaustion is established.

N v KIAMBI & ANOTHER

[2025] KEHC 3793 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division

1. Case Information

Case Name	N v Kiambi & another
Neutral Citation	[2025] KEHC 3793 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division
Judge(s)	L.N. Mugambi, J
Date of Decision	27 March 2025
Case Number	Petition E225 of 2023
Subject Area	Data Protection; CCTV Surveillance; Neighbour Disputes
Keywords	CCTV; surveillance; data controller; personal safety exemption; exhaustion doctrine; residential privacy
Editorial Classification	Data Protection · Privacy

2. Editorial Summary

A tenant petitioned against his neighbour and shared landlord after the neighbour installed a CCTV camera facing his apartment door, capturing his living room and the shared corridor, allegedly to 'spy' on his family, and after the landlord issued an eviction notice following his complaints. He sought a privacy declaration, camera removal, footage destruction and damages, alleging retaliatory eviction. The neighbour raised a preliminary objection on exhaustion and defended the installation as a personal-safety measure exempt under section 51 DPA, citing stalking and harassment. Applying the settled exhaustion framework, the Court held the dispute — a data-controller/data-subject grievance over unauthorised CCTV collection — fell within the DPA's mandatory first-instance regime, and struck out the petition for want of jurisdiction, without reaching the exemption defence or eviction claim.

4. Material Facts

The petitioner and his family resided at Faith Apartments in Ngumba Estate; the first respondent, his next-door neighbour, installed a CCTV camera on 1 May 2023 directly facing the petitioner's door, angled to capture his main entrance, living room and the shared corridor, with audio-visual coverage of approximately 30 metres/45 degrees and storage capacity of up to 365 days of footage (512GB–2TB).

The petitioner alleged the first respondent admitted installing the camera to monitor his family and refused requests to remove or reangle it; he alleged resulting distress to his children and spouse and stress-related health effects. The second respondent (landlord), after the petitioner's repeated complaints, issued a letter on 9 June 2023 directing the petitioner to vacate, citing unspecified 'misbehavior'. The first respondent's case was that she had installed the camera for personal safety after experiencing stalking, witchcraft-related harassment, and being spied upon by strangers, and contended this fell within the Data Protection Act's personal/household-purpose exemption under section 51.

5. Issues for Determination

36. Whether the High Court could determine the petitioner's claim of CCTV-related privacy infringement before it was first considered by the Data Protection Commissioner.
37. Whether the right to privacy, being non-absolute, was properly balanced against the first respondent's asserted security interest (not reached).
38. Whether the eviction letter violated the petitioner's rights under Article 39 (not reached).

6. Holding

Issue	Holding
Exhaustion	Yes — the dispute was squarely a datacontroller/data-subject grievance falling within the mandatory ODPC-first regime; the petition was struck out.
Personal-safety exemption / balancing / eviction claim	Not determined — the jurisdictional finding was dispositive.

7. Court's Reasoning

A. The First Respondent as 'Data Controller'

The Court held that the first respondent, by installing a CCTV camera and thereby determining the purpose and means of collecting footage capturing the petitioner and his family, met the Data Protection Act's definition of 'data controller', and the petitioner, as an identified natural person captured by the footage, was correspondingly a 'data subject'. The CCTV footage — recording, storing and retaining images of the petitioner's movements — constituted 'processing' of personal data within the Act's broad definition.

B. Application of the Exhaustion Framework

Surveying sections 56, 58 and 64 of the Data Protection Act (complaints to the Data Commissioner, enforcement notices, and the statutory right of appeal to the High Court), and citing *Gabriel Mutava & 2 others v Managing Director Kenya Ports Authority* for the proposition that a litigant should not trivialise constitutional jurisdiction where an adequate alternative forum exists, the Court found the petitioner's grievance — unlawful collection of personal data via CCTV — was a matter Parliament had committed in the first instance to the Data Commissioner for investigation and enforcement action.

C. Disposition

Having found the petition offended the exhaustion doctrine, the Court struck it out, expressly declining to determine the first respondent's section 51 personal-safety exemption defence, the underlying balancing of privacy against security, or the separately pleaded retaliatory-eviction claim under Article 39.

8. Ratio Decidendi

39. A private individual who installs and operates a CCTV camera capturing images of an identifiable neighbour is a 'data controller' under the Data Protection Act, and the footage constitutes personal data processing.

40. A dispute over private, inter-neighbour CCTV surveillance falls within the Data Protection Act's mandatory ODPC-first complaints regime, and is subject to the same exhaustion analysis as any other Article 31(c)-(d) grievance.

9. Obiter Dicta

The Court's extended recitation of the Data Protection Act's definitions of personal data, processing, and the data-controller/data-subject/consent framework (paras 68–80), while not strictly necessary once the exhaustion finding was reached, provides a useful template applying the Act's core definitions to a CCTV fact pattern for future cases.

3. Jurisprudential Context & Procedural History

Decided by the same judge as Mathenge, Otieno and St Joseph Health Care, this applies the settled Kweri exhaustion framework to a novel context — inter-neighbour CCTV — and is, at the time of this Volume,

the leading (if procedurally rather than substantively resolved) authority identifying residential CCTV operators as 'data controllers' under the DPA. Petition E225 of 2023, filed 3 July 2023 and amended 13 February 2024, was met with a Notice of Preliminary Objection dated 10 July 2023 raising exhaustion, addressed dispositively after full canvassing of both parties' cases.

10. Principles Established

- CCTV operators, including private individuals in a residential context, fall within the definition of 'data controller' under the Data Protection Act.
- The section 51 personal/household-purpose exemption for CCTV installed for personal safety remains an open, undetermined question in Kenyan jurisprudence, to be resolved (if at all) by the Data Commissioner in the first instance under this line of authority.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Article 31, 39, 159

Statutes

- Data Protection Act, 2019 — ss. 2, 18(1), 25, 26, 32(1), 51, 56, 58, 64

Cases

- Gabriel Mutava & 2 others v Managing Director Kenya Ports Authority & another [2016] eKLR

12. Relationship with Existing Jurisprudence

Applies the Kweri v Beehive Media exhaustion framework to a novel factual category (private CCTV surveillance), extending the doctrine's reach into residential/neighbour disputes and leaving open, for future ODPC or appellate determination, the scope of the section 51 personal-safety exemption.

13. Practical Implications

Data Controllers

Any individual or entity installing CCTV that captures a neighbour's or third party's private space (entrance, windows, living areas) should be aware they may be a 'data controller' subject to the Data Protection Act's principles.

Data Processors

Property managers/landlords receiving complaints about a tenant's CCTV installation should be alert to potential data protection exposure and avoid retaliatory action against a complaining tenant, which itself carries separate legal risk.

Data Protection Officers

Advise residential and small-business clients installing CCTV for security purposes to angle cameras to minimise capture of neighbouring private space, and to document the security rationale to support any future section 51 exemption claim.

Public Bodies

Not directly engaged, though the reasoning applies equally to CCTV operated by public bodies in residential-adjacent contexts.

Advocates

Counsel for a CCTV complainant should route the grievance to the ODPC in the first instance rather than petitioning the High Court directly.

Regulators

The ODPC should expect an increasing volume of CCTV/surveillance complaints following this judgment's clarification that such disputes fall within its jurisdiction.

14. Compliance Checklist

- ☐ Before installing CCTV, assess and, where possible, minimise the extent to which the camera's field of view captures neighbouring private space.
- ☐ Document the specific security rationale for the camera's positioning to support reliance on the personal-safety/household exemption if challenged.
- ☐ Respond substantively to a neighbour's request to reposition or reangle a camera before the matter escalates to a formal complaint.

— ☐ Landlords should avoid taking adverse action against a tenant who raises a CCTV-related privacy complaint, given the separate legal risk this creates.

CASE DIGEST NO. 11

HAKI NA SHERIA INITIATIVE V ATTORNEY GENERAL & 4 OTHERS

[2024] KEHC 10021 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division

1. Case Information

Case Name	Haki na Sheria Initiative v Attorney General & 4 others
Neutral Citation	[2024] KEHC 10021 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Constitutional and Human Rights Division
Judge(s)	L.N. Mugambi, J
Date of Decision	12 August 2024
Case Number	Petition 196 of 2023
Subject Area	Constitutional Law; Digital Identity; Data Protection Impact Assessment
Keywords	Maisha Namba; Maisha Card; digital identity; res judicata; conservatory orders; DPIA; public interest balancing
Editorial Classification	Constitutional Law · Digital Identity · Administrative Law

2. Editorial Summary

A ruling on an application to set aside a conservatory order that had halted rollout of Kenya's 'Maisha Namba' digital identity ecosystem, the NIIMS successor. The Cabinet Secretary sought to set it aside on grounds that an earlier, materially identical application by another public-interest litigant (Katiba Institute) concerning the same ecosystem had already been heard on the merits and its interim stay lifted, rendering the petitioner's application res judicata. The State also showed a DPIA had been conducted and approved before processing began, and evidenced substantial harm — a backlog exceeding 1.2 million pending

patrick@dataprivacyadvocates.co.ke

registrations, growing daily — from the suspension. Applying *res judicata* (via the 'public right' explanation) and the presumption of constitutionality, the Court found the balance of public interest favoured setting the order aside, leaving the underlying petition on the merits to proceed.

4. Material Facts

The Maisha Ecosystem — comprising a unique personal identifier (Maisha Namba), a third-generation identity card (Maisha Card), a digital identification card, and the underlying Maisha Database — was developed as a digital upgrade to Kenya's existing population register under the Kenya Citizens and Foreign Nationals Management Service Act, 2011, following the permanent retirement of second-generation identity cards on 14 November 2023. The Data Protection Commissioner confirmed, on affidavit, that a comprehensive DPIA had been conducted and approved prior to commencement of Maisha data processing, in compliance with section 31 of the Data Protection Act. The petitioner obtained a conservatory order on 25 July 2024, shortly after a government press statement (22 July 2024) described as an update on identity-card uptake progress, which the petitioner characterised as signalling commencement of mass rollout. The State disputed this characterisation and demonstrated that materially the same issues, involving the same Maisha ecosystem, had already been fully argued and determined in the earlier Katiba Institute application, in which five prior applications for conservatory relief had been declined or vacated before an interim stay was eventually lifted following an *inter partes* hearing.

5. Issues for Determination

41. Whether the petitioner's application of 23 July 2024 was *res judicata* in light of the prior determination in Judicial Review Application No. 194 of 2023.
42. Whether public interest was better served by sustaining or by setting aside the conservatory order.
43. Whether the Court should allow the application to review and set aside the conservatory order.

6. Holding

Issue	Holding
Res judicata	Established — the application sought, in substance, to relitigate the same rollout of the Maisha ecosystem already determined on the
Issue	Holding

	merits in the Katiba Institute proceedings, both applicants having litigated in the public interest.
Balance of public interest	Favoured setting aside the conservatory order, given confirmed DPIA compliance and the substantial, escalating harm from suspending identity-document issuance to over 1.2 million Kenyans.
Application to set aside	Allowed — the conservatory order of 25 July 2024 was set aside; the petitioner's application of 23 July 2024 was struck out.

7. Court's Reasoning

A. Res Judicata and Public-Interest Litigation

Applying section 7 of the Civil Procedure Act and its Explanations 4 and 6, the Court held that where two public-interest litigants raise substantially the same grievance concerning the same programme, and the issue has already been heard on the merits in the earlier proceeding, the second litigant cannot disengage from that determination merely by virtue of not having been a formal party — Explanation 6 deems all persons interested in a public right, for res judicata purposes, to claim under the party who earlier litigated it. The Court found no material new development arising from the 22 July 2024 press statement, characterising it as an update on an already-disclosed, ongoing process rather than a new commencement of mass rollout.

B. DPIA Compliance as a Relevant Preliminary Factor

The Data Commissioner's sworn confirmation that a DPIA had been conducted and approved prior to Maisha processing was treated by the Court as prima facie evidence of compliance with section 31 of the Data Protection Act at the preliminary stage, while expressly noting this could be revisited upon full hearing with expert evidence and cross-examination.

C. Balancing Public Interest and the Presumption of Constitutionality

Weighing the demonstrated, escalating harm to over a million Kenyans unable to obtain identity documentation (with attendant consequences for employment, licensing, and access to services dependent on e-Citizen infrastructure) against the petitioner's unproven allegations of constitutional violation, the Court applied the presumption of constitutionality — that impugned legislation/administrative action is presumed valid pending full determination — and found the balance of public interest favoured setting aside the conservatory order.

D. Disposition

The conservatory order of 25 July 2024 was set aside; the petitioner's application of 23 July 2024 was struck out as having no remaining juridical significance; costs were reserved to the cause, leaving the underlying constitutional petition on the merits to proceed to full hearing.

8. Ratio Decidendi

44. Where two public-interest litigants raise substantially the same grievance against the same government programme, and the issue has already been determined on the merits in the earlier proceeding, the second litigant is barred by *res judicata* via the 'public right' explanation under section 7 of the Civil Procedure Act.
45. A Data Commissioner's sworn confirmation that a DPIA was conducted and approved constitutes *prima facie* evidence of preliminary compliance with section 31 of the Data Protection Act, sufficient to weigh in an interlocutory public-interest balancing exercise.
46. In balancing whether to sustain or set aside a conservatory order against a large-scale government digital-identity programme, demonstrated, escalating and irreversible harm to a large affected population is a weighty factor, assessed against the presumption of constitutionality of the impugned action pending full trial.

9. Obiter Dicta

The Court's characterisation of the Maisha Ecosystem as merely a 'digital upgrade' to the existing population register, rather than a new system requiring fresh constitutional scrutiny akin to NIIMS in Nubian Rights Forum, is a significant framing that was not itself the subject of full argument at this interlocutory stage and may be revisited at the substantive hearing of Petition 196 of 2023.

3. Jurisprudential Context & Procedural History

Decided in August 2024, this is the principal reported successor to Nubian Rights Forum in Kenya's digital-identity litigation, confirming that by 2024 the DPA's operationalisation — an appointed Data Commissioner, functioning DPIA-approval — permits large-scale identity programmes to proceed on a materially different footing than NIIMS could in 2019–2020. It is also a rare authority applying *res judicata*'s 'public right' explanation across successive public-interest litigants. The Notice of Motion of 1 August 2024 sought to set aside a conservatory order of 25 July 2024 in Petition 196 of 2023, heard on an expedited, certified-urgency basis with reference to the overlapping Katiba Institute application (JR No.

194 of 2023).

10. Principles Established

- Res judicata, via the 'public right' explanation, applies across successive public-interest litigants raising the same grievance against the same government programme.
- DPIA approval by the Data Commissioner is treated as meaningful, if provisional, evidence of compliance at the interlocutory stage.
- Escalating, large-scale harm to the public from suspending a national administrative system is a significant factor against sustaining interim conservatory relief.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010

Statutes

- Data Protection Act, 2019 — s. 31
- Civil Procedure Act — s. 7 (Explanations 4 and 6)
- Kenya Citizens and Foreign Nationals Management Service Act, 2011

Cases

- R v Cabinet Secretary, Ministry of Interior and Coordination of National Government & others, ex parte Katiba Institute, Judicial Review Application No. 194 of 2023
- Board of Management of Uhuru Secondary School v City Council County Director of Education [2015] eKLR
- Centre for Human Rights & Awareness (CREAW) & 7 others v Attorney General (2011) eKLR
- Kevin K. Mwiti v Kenya School of Law & others
- Gatirau Peter Munya v Dickson Mwenda Kithinji [2014] eKLR

12. Relationship with Existing Jurisprudence

The direct doctrinal successor to Nubian Rights Forum in the digital-identity space, confirming that by 2024 the Data Protection Act's operational infrastructure (DPIA approval, functioning Data

Commissioner) is treated by the courts as materially distinguishing Maisha Namba's interlocutory posture from NIIMS's 2019–2020 constitutional deficit — though the underlying petition's merits remain to be determined.

13. Practical Implications

Data Controllers

Government bodies rolling out large-scale identity or biometric systems should secure and be prepared to evidence DPIA approval before commencement, as this materially strengthens their position in any conservatory-order contest.

Data Processors

Vendors and contractors supporting national identity programmes should expect litigation risk to concentrate at the interlocutory (conservatory order) stage in the current Kenyan legal environment.

Data Protection Officers

DPOs should treat DPIA documentation as a live litigation asset, not merely a compliance formality, given courts now expressly weigh it in interim relief applications.

Public Bodies

Public bodies should coordinate press communications about programme rollout carefully, given that even routine progress updates can be characterised by opposing litigants as triggering fresh grounds for conservatory relief.

Advocates

Counsel for successive public-interest litigants challenging the same government programme should be alert to res judicata risk where an earlier, substantially similar application has already been determined on the merits.

Regulators

The ODPC's DPIA-approval function is now judicially recognised as carrying real interlocutory evidentiary weight in constitutional litigation over national data systems.

14. Compliance Checklist

- ☐ Secure Data Commissioner DPIA approval before commencing any large-scale digital-identity or biometric data processing programme.

- ☐ Maintain a clear evidentiary record distinguishing genuine new developments from routine progress updates, in case of future conservatory-order litigation.
- ☐ Document the scale and nature of public harm arising from any suspension of a national administrative programme, for use in an interlocutory public-interest balancing exercise.
- ☐ Before filing a public-interest challenge to a government programme, check whether the same grievance has already been substantively determined in earlier proceedings.

K v NATIONAL TRANSPORT & SAFETY AUTHORITY

[2023] KETLABT 663 (KLR) • Transport Licensing Appeals Board Tribunal, sitting at Kirinyaga

1. Case Information

Case Name	K v National Transport & Safety Authority
Neutral Citation	[2023] KETLABT 663 (KLR)
Court	Transport Licensing Appeals Board Tribunal, sitting at Kirinyaga
Judge(s)	Dr. A.K. Njenga (Chairperson), Joseph McDonald, Maryan Hajir, Waithira Muiruri & James Ngomeli (Members)
Date of Decision	14 August 2023
Case Number	Appeal TLAB/E041 of 2022
Subject Area	Data Protection; Administrative Law; Data Accuracy
Keywords	data accuracy; right to rectification; automated decision-making; Police Clearance Certificate; PSV badge; administrative fairness
Editorial Classification	Data Protection · Administrative Law

2. Editorial Summary

A PSV driver appealed NTSA's refusal to renew his badge, founded on an outstanding 'Murder' remark on his Police Clearance Certificate. He was convicted in 2011, completed a three-year probation in 2014, and had been issued badges in 2018 and 2020 on a certificate recording 'NIL' remarks. His 2022 certificate, generated by the DCI's record system, reverted to showing the historical charge despite the sentence being fully served eight years earlier. The Tribunal held NTSA could require a current certificate in principle, but the appellant proved he had no pending matter and the remark was inaccurate. Applying section 25(f)

(accuracy) and section 26 (correction) DPA, it found the outdated remark a violation and ordered NTSA to issue the badge within 14 days.

4. Material Facts

The appellant, a licensed driver, was convicted in 2011 (judgment of Okwengu, J, dated 24 January 2011) and sentenced to three years' probation for an offence described in the record as murder, which sentence he completed in 2014. His 2018 Police Clearance Certificate recorded 'NIL' remarks, on the strength of which he was issued PSV badges in 2018 (valid to 31 October 2019) and 2020 (valid to 12 March 2021) without objection from NTSA. His 2022 Police Clearance Certificate, however, again reflected an outstanding remark of 'Murder', notwithstanding the concluded and fully served 2011 sentence, and NTSA relied on this remark to decline renewal of his PSV badge. NTSA's position was that it did not object to the appellant's application in principle but required a current, accurate certificate, and separately noted that the Police Clearance Certificate was, by the time of hearing, no longer a formal requirement for PSV badge issuance.

5. Issues for Determination

47. Whether NTSA had a right not to grant the Appellant a PSV badge on the ground that he had a criminal record.

48. Whether, notwithstanding the remarks on the Appellant's Police Clearance Certificate, his application for a PSV badge should nonetheless be approved.

6. Holding

Issue	Holding
NTSA's right to require a clean record	In principle, yes — NTSA may lawfully require a certificate of good conduct under regulation 6(m) and take administrative action independent of any prior criminal proceedings; but on these facts, the appellant had no pending criminal matter, having fully served his 2011 sentence by 2014.

Approval notwithstanding the PCC remark	Yes — the appellant proved both that he had no outstanding criminal matter and that the remark on his current certificate was inaccurate; the Tribunal ordered NTSA to issue the PSV badge within 14 days notwithstanding the erroneous certificate.
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7. Court's Reasoning

A. NTSA's Administrative Discretion and Double Jeopardy

The Tribunal accepted that regulation 6(m) of the National Transport and Safety Authority (Operation of Public Service Vehicles) Regulations, 2014 entitles NTSA to require a certificate of good conduct, and that an administrative agency's reliance on a licensing prerequisite does not offend double jeopardy principles even where the underlying conduct was also the subject of criminal proceedings, citing the New York authority *Barnes v Tofany* for the proposition that civil and criminal sanctions may both attach to the same conduct.

B. No Pending Criminal Matter

On the specific facts, however, the Tribunal found the appellant had sufficiently proved he had no pending criminal matter — his 2011 sentence having been fully served by 2014 — and held he ought not to be burdened with continuing administrative punishment absent a specific policy or regulation authorising indefinite disqualification on the basis of a concluded matter.

C. Data Accuracy and the Right to Correction

Central to the Tribunal's reasoning was section 25(f) of the Data Protection Act, requiring every data controller/processor to ensure personal data is accurate and kept up to date, with inaccurate data corrected or erased without delay, and section 26, affording every data subject the right to correction of false or misleading data. The Tribunal found the Directorate of Criminal Investigations' record system had generated an outdated and inaccurate remark on the appellant's 2022 certificate, and that NTSA's reliance on that inaccurate data to deny a livelihood-affecting licence was 'a clear violation' of the appellant's rights, warranting relief notwithstanding the technical requirement for a certificate of good conduct.

D. Automated Processing (Section 35) — An Ancillary and Less Persuasive Strand

The Tribunal additionally invoked section 35 of the Data Protection Act, concerning a data subject's right not to be subject to a decision based solely on automated processing that produces legal effects, finding NTSA's reliance on the certificate to constitute such a decision without the requisite notification and reconsideration process under section 35(3). This strand of reasoning is analytically less secure than the accuracy/correction analysis: the record does not establish that NTSA's licensing decision was itself generated by an automated or algorithmic process (as opposed to a human official declining an application based on inaccurate but manually reviewed source data), and the digest editors respectfully

note this as an area where the Tribunal's application of section 35 may not withstand close scrutiny on appeal, though it did not affect the ultimate, well-founded outcome grounded in the accuracy principle.

8. Ratio Decidendi

- 49. A data controller or processor relying on personal data to make an administrative decision affecting a data subject's livelihood must ensure that data is accurate and up to date; reliance on inaccurate data to deny a licence or benefit violates section 25(f) of the Data Protection Act.
- 50. A data subject who proves that personal data relied upon against them is false, misleading or outdated is entitled to correction of that data under section 26, and a decision-maker who continues to rely on demonstrably inaccurate data risks its decision being set aside.
- 51. An administrative agency's general entitlement to require a certificate of good conduct as a licensing precondition does not extend to indefinite reliance on a certificate shown to be factually inaccurate as to a concluded matter.

9. Obiter Dicta

The Tribunal's finding that NTSA's reliance on the Police Clearance Certificate amounted to a 'decision based solely on automated processing' under section 35 is, in the digest editors' assessment, an overextension not clearly supported by the facts as recorded, and should be treated with caution as persuasive rather than settled authority on the scope of section 35.

3. Jurisprudential Context & Procedural History

This is a quasi-judicial tribunal decision (Transport Licensing Appeals Board, not the High Court), but a rare, instructive example of a tribunal directly applying DPA accuracy and correction principles to an ordinary licensing dispute, showing that data protection obligations bind not only the primary recordholder (the DCI) but inform downstream decisions (NTSA's) relying on inaccurate inter-agency data.

Appeal TLAB/E041 of 2022 was lodged by Memorandum of Appeal dated 25 November 2022; the appellant was self-represented, NTSA represented by in-house counsel, and judgment delivered 14 August 2023.

10. Principles Established

- The data accuracy principle (s.25(f)) can operate as a complete answer to an administrative refusal grounded in inaccurate source data held by a different government agency.
- The right to correction (s.26) is enforceable not only against the agency holding the inaccurate record but is relevant to assessing the lawfulness of a downstream decision by a different agency relying on that record.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Article 47

Statutes

- Data Protection Act, 2019 — ss. 25(f), 26, 35(1) and (3)
- National Transport and Safety Authority Act No. 33 of 2012 — s. 3

Regulations

- National Transport and Safety Authority (Operation of Public Service Vehicles) Regulations, 2014 — reg. 6(m)

Cases

- In the Matter of Barnes v Tofany, 27 NY2d 74 (1970) (New York Court of Appeals — administrative sanctions distinct from criminal sanctions for the same conduct)

Comparative Jurisprudence

- Barnes v Tofany (United States) — double jeopardy inapplicable to administrative licensing sanctions

12. Relationship with Existing Jurisprudence

A standalone but practically significant application of the Nubian Rights Forum-era emphasis on data accuracy in the specific context of licensing decisions dependent on inter-agency data sharing (here, DCI-generated criminal records relied upon by NTSA), illustrating the accuracy and correction principles operating outside the constitutional-petition context in which most of this Volume's other authorities arise.

13. Practical Implications

Data Controllers

Government agencies issuing licences or certificates dependent on data generated by another agency should build in a mechanism for applicants to challenge and correct inaccurate underlying data before a licence is refused.

Data Processors

Record-generating bodies (such as the DCI in this case) bear a data protection obligation to keep criminal records accurate and current, including timely reflection of concluded sentences.

Data Protection Officers

DPOs in licensing agencies should treat a data subject's evidence of inaccuracy in a third-party-generated record as a live compliance issue, not merely a matter for the originating agency to resolve.

Public Bodies

Public bodies relying on inter-agency data feeds for licensing decisions should implement periodic accuracy checks and a clear, accessible correction/appeal pathway for affected individuals.

Advocates

Counsel or self-represented litigants challenging an administrative refusal grounded in inaccurate personal data have a strong template in this decision for invoking sections 25(f) and 26 of the Data Protection Act, though should exercise caution before relying on section 35 absent clear evidence of solely automated decision-making.

Regulators

The ODPC and sector regulators alike should note that data accuracy obligations extend across agency boundaries wherever one body's data is relied upon by another for a decision affecting a data subject.

14. Compliance Checklist

- ☐ Before relying on a certificate or record generated by another agency to refuse an application, verify its currency and accuracy where the applicant disputes it.
- ☐ Provide a clear, accessible mechanism for individuals to request correction of inaccurate personal data under section 26.
- ☐ Where reliance is placed on an inter-agency data feed, build in periodic accuracy audits.

- ☐ Avoid characterising a manually reviewed administrative decision as 'automated processing' under section 35 without a factual basis; conversely, controllers using genuinely automated decision systems must provide the notification and reconsideration process section 35(3) requires.

ST JOSEPH HEALTH CARE v M

[2026] KEHC 4643 (KLR) • High Court of Kenya at Nairobi (Milimani Law Courts) — Civil Division
(First Appeal from the Office of the Data Protection Commissioner)

1. Case Information

Case Name	St Joseph Health Care v M
Neutral Citation	[2026] KEHC 4643 (KLR)
Court	High Court of Kenya at Nairobi (Milimani Law Courts) — Civil Division (First Appeal from the Office of the Data Protection Commissioner)
Judge(s)	J.M. Chigiti, SC, J
Date of Decision	9 April 2026
Case Number	Civil Appeal E1061 of 2024
Subject Area	Data Protection; Employment Data; Statutory Appeal
Keywords	employee image; consent standard; granular consent; withdrawal of consent; commercial gain; ODPC appeal; section 64 DPA; damages quantum
Editorial Classification	Data Protection · Employment

2. Editorial Summary

A first statutory appeal, under section 64 DPA, from an ODPC determination awarding a former employee Kshs 500,000 against his ex-employer, a non-profit health centre, for unauthorised use of his image in its magazine, calendars and signage. The health centre contended he had consented at a staff meeting and that use was public-interest, not commercial. Re-evaluating the evidence, the High Court held general meeting minutes did not amount to valid consent under section 2 DPA — free, specific, unequivocal, informed, with clear withdrawal information; that an employer's authority heightens rather than diminishes the need for genuinely free consent; and that a price-list reference in the same minutes undermined the non-profit defence. The ODPC's document-only procedure was held lawful, and the Kshs 500,000 award upheld as reasonable. The appeal was dismissed with costs.

4. Material Facts

The respondent, a former employee of the appellant health centre, complained that his image had been used without his consent in the health centre's 'Dream Magazine', wall calendars, and promotional signage, including, controversially, signage during the 2022 general election period that he alleged falsely suggested he was a candidate for the Kahawa Wendani ward MCA seat. He raised the matter internally with the board chairman and was subsequently summarily dismissed for gross misconduct; he had not separately challenged that dismissal before any employment tribunal. He then lodged a complaint with the ODPC, which, after a document-only investigation under section 57(1)(b) of the Act, found in his favour and awarded Kshs 500,000 compensation, notwithstanding also finding (per the appellant's grounds of appeal) an absence of proven commercial gain. The appellant relied on minutes of a staff meeting (dated 19 January 2021) as evidence of consent, and on witness statements from other employees, whose employment status the ODPC found had not been adequately evidenced.

5. Issues for Determination

52. Whether the appeal has merit — encompassing whether the Data Commissioner erred in finding the appellant had not obtained the respondent's valid consent, and in finding the respondent's image was used for commercial gain.
53. Whether the quantum of compensation (Kshs 500,000) awarded by the Data Commissioner was excessive.
54. Who bears the costs of the appeal.

6. Holding

Issue	Holding
Consent	Not established — the staff meeting minutes did not amount to free, specific, unequivocal and informed consent as defined in section 2 of the Data Protection Act.
Issue	Holding
Commercial use	Established on the balance of the evidence — the same minutes referenced a new price list for clients, evidencing a commercial dimension to the appellant's activities notwithstanding its nonprofit status.

Fairness of ODPC's document-only hearing	Lawful and procedurally fair, within the Data Commissioner's discretion under section 57(1) and Regulation 11.
Quantum	Kshs 500,000 upheld as reasonable, consistent with the comparable quantum in <i>Muthoni v Solpia Kenya Limited</i> .
Costs	Awarded to the respondent — the appeal was dismissed.

7. Court's Reasoning

A. The Standard for Valid Consent

Applying section 2's definition of consent as an express, unequivocal, free, specific and informed indication of a data subject's wishes, the Court elaborated each element: consent is 'free' only if the data subject faces no compulsion or negative consequence for withholding it and may withdraw it without detriment (s.32(2)); 'informed' requires the controller to furnish accurate, full information — clearly, simply, in plain language — on the nature of the data, the purpose of processing, consequences of refusal, and the right to withdraw; and 'specific' requires granular consent options for each distinct type of processing, with information on how to withdraw. Measured against this standard, the staff meeting minutes — a general discussion with no clause addressing exit or withdrawal — could not constitute valid consent; 'very many things arose in the meeting... clouding any possibility of a free consent'.

B. The Employer-Employee Power Imbalance

The Court held that an employer's position of authority over its employees heightens, rather than diminishes, the obligation to ensure genuinely free consent, cautioning employers against using that authority as a platform that pressures employees to surrender their image or data on vague terms or out of fear of reprisal, and holding that a data subject's failure to affirmatively challenge the limits of a proposed use does not excuse an employer's failure to secure valid consent in the first place. The burden of proving valid consent rests on the data controller under section 32(1), a burden the appellant did not discharge.

C. Commercial Gain Notwithstanding Non-Profit Status

Rejecting the appellant's contention that its non-profit status precluded any finding of commercial use, the Court found that the same minutes relied upon for consent also recorded discussion of a newly rolled out client price list, evidencing a commercial operating dimension. Applying the three-part personality-rights test from *Jessica Clarise Wanjiru v Davinci Aesthetics* (protected attribute; exploitative purpose; absence of consent), as further illustrated by the South African authority *Wells v Atoll Media*, the Court found the

use of the respondent's image in the appellant's promotional materials was exploitative rather than purely expressive, notwithstanding the health centre's charitable orientation.

D. Procedural Fairness of the ODPC's Investigative Process

The Court held that section 57(1) of the Data Protection Act vests the Data Commissioner with discretion as to the form of investigation — oral examination, document production, or sworn written statements — to be exercised judiciously within Article 47's fair administrative action threshold. Because the appellant had been notified of the complaint, given the opportunity to respond in accordance with Regulation 11 of the Data Protection (Complaints Handling Procedure and Enforcement) Regulations, 2021, and had done so, the document-only approach adopted was found lawful and procedurally fair, notwithstanding the appellant's argument that oral examination would have better tested conflicting witness evidence.

E. Quantum of Compensation

Applying the appellate restraint principle from *Kemfro Africa Limited v A.M. Lubia and Gicheru v Morton* (disturb quantum only where an irrelevant factor was considered, a relevant factor ignored, or the figure is so inordinately high or low as to disclose an error of principle), the Court surveyed comparable awards — *Muthoni v Solpia Kenya Limited* (Kshs 500,000, upheld on appeal), *Catherine Njeri Wanjiru v Machakos University* (Kshs 700,000), and *Joel Mutuma Kirimi & another v NHIF* (Kshs 5,000,000 each, materially more extensive publication) — and found the Kshs 500,000 award neither irrational nor outside the range disclosed by comparable authority, declining to disturb it.

8. Ratio Decidendi

- 55. Minutes of a general staff meeting, without a clear affirmative consent mechanism and without information on how to withdraw consent, do not constitute valid consent under section 2 of the Data Protection Act.
- 56. An employer's position of authority over an employee heightens its obligation to ensure that any consent obtained for use of the employee's image or data is genuinely free, specific and informed; failure to challenge a proposed use does not cure an employer's failure to obtain valid consent.
- 57. The burden of proving valid consent rests on the data controller under section 32(1); an employer that cannot discharge this burden is liable notwithstanding any non-profit or public-interest characterisation of its activities.
- 58. A data controller's non-profit status does not preclude a finding of 'commercial gain' or exploitative use where its broader operations carry a commercial dimension.
- 59. The Data Commissioner has discretion, exercised judiciously and consistently with Article 47, to determine the form of investigation (oral examination, document production, or sworn statement) under section 57(1) of the Data Protection Act.
- 60. Appellate courts will not disturb a Data Commissioner's damages award absent an identifiable error of principle or a figure so inordinately high or low as to be plainly erroneous.

9. Obiter Dicta

The Court's observation that the respondent's separate grievance about election-period signage allegedly implying his candidacy for a ward seat, while emotionally significant to him, did not require separate determination once the core consent/commercial-use findings were made, leaving open how such a claim might be analysed as a standalone matter in a future case.

3. Jurisprudential Context & Procedural History

The most recent judgment in this Volume (April 2026), this is a mature statement of consent doctrine under a bedded-down DPA regime and the first case here to arise as a formal section 64 statutory appeal, illustrating de novo appellate re-evaluation per *Selle v Associated Motor Boat Co*. It consolidates the developing quantum scale across *Mathenge* (Kshs 240,000), *Muthoni v Solpia* (Kshs 500,000), *Machakos University* (Kshs 700,000) and *Joel Mutuma Kirimi v NHIF* (Kshs 5,000,000). Following the Data Commissioner's determination of 12 August 2024, the appellant filed a Memorandum of Appeal and Supplementary Record raising grounds on consent, commercial use and quantum, heard under section 64 DPA and section 78(2) Civil Procedure Act.

10. Principles Established

- The 'free, specific, unequivocal, informed' consent standard under section 2 DPA requires an affirmative, granular consent process addressing withdrawal — general meeting discussion does not suffice.
- Employer-employee dynamics are a relevant, aggravating factor in assessing whether consent was genuinely free.
- Kenyan damages for unauthorised employee image use, as of 2026, cluster in the Kshs 500,000–700,000 range for ordinary cases, escalating materially (Kshs 5,000,000 per claimant) for more extensive or egregious misuse.

11. Authorities Considered

Constitutional Provisions

- Constitution of Kenya, 2010 — Articles 3, 20, 24, 31(c), 47, 50

Statutes

- Data Protection Act, 2019 — ss. 2, 8(1)(f), 27, 30, 32(1)-(2), 37, 57(1), 64, 65
- Civil Procedure Act — s. 78(2)
- Fair Administrative Action Act — s. 8
- Evidence Act — s. 107(1)

Regulations

- Data Protection (General) Regulations, 2021 — reg. 14
- Data Protection (Complaints Handling Procedure and Enforcement) Regulations, 2021 — reg. 11

Cases

- Jessica Clarise Wanjiru v Davinci Aesthetics & Reconstruction Centre & 2 others [2017] eKLR
- Catherine Njeri Wanjiru v Machakos University [2022] KEHC 10599 (KLR)
- Muthoni v Solpia Kenya Limited t/a Sista Kenya [2025] KEHC 34 (KLR)
- Joel Mutuma Kirimi & another v National Hospital Insurance Fund (NHIF) [2020] eKLR
- N W R & another v Green Sports Africa Ltd & 4 others [2017] eKLR
- Selle & another v Associated Motor Boat Co Ltd & others [1968] EA 123
- Kemfro Africa Limited T/A Meru Express Services, Gathogo Kanini v A.M.M. Lubia & another (1982–88) 1 KAR 727
- Gicheru v Morton & another [2005] 2 KLR 333
- Attorney General v Bala [2023] KECA 117 (KLR)
- Abok James Odera T/A Odera & Associates v John Patrick Muchira T/A Muchira & Co Advocates [2013] eKLR
- Eunice Auma Onyango v Salin Akinyi Oluoch [2015] eKLR
- Republic v Rosemary Wairimu Munene, ex parte Ihururu Dairy Farmers Cooperative Society Ltd, Judicial Review Application No. 6 of 2014

International Instruments

- Universal Declaration of Human Rights — Article 12
- International Covenant on Civil and Political Rights — Article 17

Comparative Jurisprudence

- O'Keeffe v Argus Printing and Publishing Co Ltd and Another (1954) (3) SA 244 (C) (South Africa)
- Wells v Atoll Media (Pty) Ltd and Another [2009] ZAWCHC 173 (South Africa)

12. Relationship with Existing Jurisprudence

The capstone quantum authority in this Volume, drawing together and reconciling the damages reasoning of *Mathenge, Muthoni v Solpia*, *Catherine Njeri Wanjiru v Machakos University* and *Joel Mutuma Kirimi v NHIF* into a single comparative framework, and the first case in the Volume to test and uphold the ODPC's procedural conduct of a complaint investigation on appeal.

13. Practical Implications

Data Controllers

Employers seeking to use staff images in publications or marketing materials must implement a documented, granular consent process addressing each intended use and the right to withdraw — general meeting minutes are legally insufficient.

Data Processors

Marketing/communications teams producing employer publications should confirm the underlying consent basis for each image before publication, irrespective of the organisation's for-profit or non-profit status.

Data Protection Officers

DPOs at non-profit and public-interest organisations should not assume charitable status exempts image use from 'commercial gain' analysis where the organisation has any fee-charging or price-list dimension.

Public Bodies

Public and quasi-public institutions relying on 'public interest' or 'awareness creation' framing for use of individuals' images should still secure documented, specific consent.

Advocates

Counsel appealing an ODPC determination should be aware the High Court will re-evaluate the evidence afresh (first-appeal standard) but will apply real deference to quantum absent an identifiable error of principle.

Regulators

The ODPC's document-only investigative procedure under section 57(1)(b) is now judicially endorsed as procedurally fair, provided the complaint-and-response process under Regulation 11 is properly followed.

14. Compliance Checklist

- ☐ Implement a documented, granular consent form for any use of an employee's or client's image, specifying each intended use (e.g., magazine, calendar, signage, social media).

- ☐ Include a clear withdrawal mechanism in every consent process, and honour withdrawal requests without penalty.
- ☐ Do not rely on general meeting minutes, verbal discussion, or employee silence as evidence of valid consent.
- ☐ Reassess 'non-profit'/public-interest defences against actual evidence of fee-charging or commercial activity before relying on them.
- ☐ Respond promptly and substantively to any ODPC complaint notification, since document-only investigations are a lawful and common procedural mode.
- ☐ Benchmark potential damages exposure against the Kshs 500,000–700,000 range for ordinary unauthorised-image-use cases, escalating for more extensive misuse.

* * *

END OF VOLUME I

Digest research, verification and compilation

MUCHANGI PATRICK